ALLISON A. KRAY, ESQ. (SBN 312544)
allison.kray@fedex.com
FEDERAL EXPRESS CORPORATION
2601 Main Street, Suite 1100
Irvine, California 92614
Telephone: (949) 862-4615
Facsimile: (901) 492-5641

Attorney for Defendant
FEDERAL EXPRESS CORPORATION

UNITED STATES DISTRICT COURT

EASTERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI, Plaintiff, v. FEDERAL EXPRESS CORPORATION, and DOES 1 through 10, inclusive, Defendants.	Case No. **DEFENDANT FEDERAL EXPRESS CORPORATION'S PETITION AND NOTICE OF REMOVAL OF CIVIL ACTION UNDER ARTICLE III OF THE U.S. CONSTITUTION AND 28 U.S.C. §§ 1332, 1441 AND 1446** **[DIVERSITY JURISDICTION]** Complaint Filed: July 15, 2026 Trial Date: Not Set

TO THE CLERK OF THE UNITED STATES DISTRICT COURT, EASTERN DISTRICT OF CALIFORNIA, PLAINTIFF BRENDAN NGEHSI NEWANFORBI, AND HIS ATTORNEYS OF RECORD:

PLEASE TAKE NOTICE, pursuant to 28 U.S.C. §§ 1332, 1441, and 1446, Defendant FEDERAL EXPRESS CORPORATION (hereinafter, "Defendant") hereby removes the above captioned action from the Superior Court in the State of California County of San Joaquin to the United States District Court for the Eastern District of California.

This removal is based on diversity jurisdiction. As is set forth below, this case meets all of the diversity statute's requirements for removal and is timely and properly removed by the filing of this Notice. As required by 28 U.S.C. § 1446(d), Defendant is filing in the Superior Court of the State of California, County of San Joaquin and serving upon Plaintiff Brendan Ngehsi Newanforbi, in pro per, a Notice to State Court and Adverse Party of Removal of Civil Action to Federal Court with these removal papers.

In support of this Notice of Removal, Defendant states the following:

I. STATE COURT PROCEEDINGS

1. On July 15, 2026, Plaintiff Brendan Ngehsi Newanforbi ("Plaintiff") filed his Complaint in the Superior Court of California for the County of San Joaquin, entitled *Brendan Ngehsi Newanforbi v. Federal Express Corporation, a Delaware corporation, and Does 1 through 10, inclusive*, Case No. STKCVUWT20269118 ("Complaint"). (Declaration of Allison A. Kray ("Kray Decl.") at ¶ 3, Ex. 1).

2. The Complaint alleges the following causes of action: (1) Violation of Cal. Penal Code §290.46(j)(2)(E); (2) Failure to Hire in Violation of Public Policy; (3) Violation of ICRAA (Cal. Civ. Code § 1786 et seq.); (4) Invasion of Privacy (Cal. Const., Art. I,§ I); (5) Negligence Per Se; (6) Unlawful Business Practices (Bus. & Prof. Code § 17200 et seq.). A true and correct copy of the Complaint is attached as Exhibit 1 to the Declaration of Allison A. Kray at ¶ 3.

3. Plaintiff alleges he applied for employment with Defendant Federal

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Express Corporation in or about early 2025 for a position in Defendant's delivery and package handling operations in California. (Compl., ¶ 16). Plaintiff further alleges Defendant procured a pre-employment background check through First Advantage, an investigative consumer reporting agency. (*Id.,* ¶¶ 17-20). Plaintiff alleges, on information and belief, that the background screening report contained information derived from California's Megan's Law sex offender registry, that Defendant reviewed and considered that information, and that Defendant denied Plaintiff employment based in whole or in substantial part on Plaintiff's status as a registrant on the sex offender registry. (*Id*., ¶¶ 21-23, 26-28). Plaintiff alleges he suffered lost wages, lost employment benefits, lost career opportunities, emotional distress, and economic harm as a result of Defendant's decision not to hire him. (*Id*., ¶¶ 29-30, 42, 48, 53, 58, 63). Plaintiff further seeks statutory damages or penalties, punitive damages, attorneys' fees, costs, restitution, and injunctive relief. (*Id*., ¶¶ 37, 43, 48, 64; Prayer for Relief, pp. 16-17).

4. Pursuant to 28 U.S.C. § 1446(d), Exhibits 1-7 attached to the Declaration of Allison A. Kray in support of this Notice of Removal constitute all process, pleadings, and orders filed in the state court action in this matter. (Kray Decl. at ¶¶ 1-8, Exs. 1-7).

5. As set forth more fully below, based on the allegations of the Complaint and other evidence collected by Defendant, this Court has original jurisdiction pursuant to 28 U.S.C. § 1332 because it is a civil action between citizens of different states and the amount in controversy exceeds $75,000. Therefore, this action may be removed to this Court by Defendant pursuant to 28 U.S.C. § 1441(a).

II. DEFENDANT HAS SATISFIED THE PROCEDURAL REQUIREMENTS FOR REMOVAL

A. Timing of Removal is Proper.

6. Pursuant to 28 U.S.C. § 1446(b), "a notice of removal may be filed within thirty days after receipt by the defendant, though service or otherwise of a copy of an amended pleading, motion, order or other paper from which it may be first be

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SUITE 1100
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ascertained that the case is on which is or has become removable." The 30-day removal period runs when the party seeking to remove receives a "paper from which it may first be ascertained that the case is . . . removable." 28 U.S.C. § 1446(b)(3).

7. As is set forth above, Plaintiff served the Complaint on Defendant on July 24, 2026. (Kray Decl. at ¶ 4, Ex. 2). Therefore, removal is timely, as the action is being removed within the thirtieth day of service and within one year after commencement of this action in accordance with 28 U.S.C. § 1446(b) and Federal Rules of Civil Procedure, Rule 6(a)(1)(C).

B. Venue is Proper.

8. Venue is proper in this Court pursuant to 28 U.S.C. § 1446 because this action was originally filed in San Joaquin Superior Court, located within the Eastern District. Venue of this action is also proper pursuant to 28 U.S.C. § 1391, providing that an action may be venued in a judicial district where a substantial part of the events or omissions giving rise to the claim occurred. *See* 28 U.S.C. § 1391(a).

C. Procedural Requirements for Removal are Met.

9. Pursuant to 28 U.S.C. § 1446(a), copies of all process, pleadings and orders served upon Defendant are attached as Exhibits 1-7 to the Kray Declaration in support of this Notice of Removal. Pursuant to 28 U.S.C. § 1446(d), a copy of this Notice of Removal, with all removal papers attached, is being served upon counsel for the Plaintiff and a copy is being filed with the Clerk of the Superior Court in San Joaquin County and with the Clerk of the Eastern District of California. (Kray Decl. at ¶ 8).

III. DEFENDANT HAS SATISFIED THE REQUIREMENTS FOR DIVERSITY JURISDICTION

10. This is a civil action over which this Court has original jurisdiction under 28 U.S.C. section 1332(a), in that the matter in controversy exceeds the sum or value of $75,000, exclusive of interest and costs, and is between . . . (1) citizens of different states. 28 U.S.C. §1332(a)(1).

A. There Exists Diversity Between the Parties.

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11. Citizenship of Defendant Federal Express Corporation. Defendant Federal Express Corporation was incorporated in Delaware with its principal place of business in Memphis, Tennessee. (Declaration of Shahram Eslami ("Eslami Decl.") at ¶ 3).

12. A corporation's citizenship is determined by its state of incorporation and principal place of business. 28 U.S.C. § 1332(c)(1). The Supreme Court has held that a corporation's principal place of business is its "nerve center." *Hertz Corp. v. Friend*, 559 U.S. 77, 88 (2010). A corporation's nerve center is its headquarters – "the place where a corporation's officers direct, control, and coordinate the corporation's activities." *Id.*

13. At the time the action commenced, Defendant Federal Express Corporation was, and continues to be, a citizen of the States of Delaware and Tennessee. Defendant was incorporated in Delaware on June 24, 1971. (Eslami Decl. at ¶ 3). Since 1973, Defendant's headquarters and principal place of business has been located in Memphis, Tennessee. (*Id.*). Currently, Defendant's world headquarters and principal place of business is located at 3610 Hacks Cross Road, Memphis, Tennessee 38125. (*Id.*). The majority of Defendant's high-level officers, including its President and Chief Executive Officer, Chief Operating Officer, Chief Financial Officer, Chief Legal Officer, and Chief Human Resources Officer, work in Memphis, Tennessee. (*Id.*). These high-level officers direct, control, and coordinate the corporation's activities from its Memphis headquarters.

14. If a party is a corporation, it is a citizen of both its state of incorporation and the state where it has its principal place of business. 28 U.S.C. § 1332(c)(1); *Hertz Corp., supra,* 599 U.S. at 92-93 ("[w]e conclude that the phrase 'principal place of business' refers to the place where the corporation's high level officers direct, control, and coordinate the corporation's activities."). Federal Express Corporation is a citizen of Delaware and Tennessee.

15. The citizenship of fictitiously named "Doe" defendants is to be disregarded for purposes of removal pursuant to 28 U.S.C. § 1441(a). Moreover, "Doe" defendants

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named but not served are not joined in this Notice of Removal. *Savelson v. W. States Bankcard Ass'n*, 731 F.2d 1423, 1429 (9th Cir. 1984).

16. Citizenship of Plaintiff. For diversity purposes, a person is a "citizen" of the state in which he or she is domiciled. *Kantor v. Wellesley Galleries, Ltd*., 704 F.2d 1088, 1090 (9th Cir. 1983). A person's domicile is the place he or she resides with the intention to remain, or to which he or she intends to return. *Kanter v. Warner-Lambert Co.*, 265 F.3d 853, 857 (9th Cir. 2001).

17. Plaintiff was a citizen of the State of California at the time this action was filed. Plaintiff alleges he is an individual residing in the County of San Joaquin, California. (Kray Decl., Ex.1, Compl., ¶ 4). *See Lew v. Moss*, 797 F.2d 747, 751 (9th Cir. 1986) (residency can create a rebuttable presumption of domicile supporting diversity of citizenship); *see also State Farm Mut. Auto Ins. Co. v. Dyer*, 19 F.3d 514, 519-20 (10th Cir. 1994) (allegation by party in state court complaint of residency "created a presumption of continuing residence in [state] and put the burden of coming forward with contrary evidence on the party seeking to prove otherwise"); *see also Smith v. Simmons*, 2008 U.S. Dist. LEXIS 21162, *22 (E.D. Cal. 2008) (place of residence provides "prima facie" case of domicile).

18. Therefore, under 28 U.S.C. § 1332(a), this action is between parties who are citizens of different states: Plaintiff, a citizen of California, and Defendant Federal Express Corporation, citizen of Delaware and Tennessee.

19. Once the foregoing minimal diversity has been established, removal is proper under 28 U.S.C. § 1332(d). *Serrano v. 180 Connect Inc.*, 478 F.3d 1018, 1019 (9th Cir. 2007).

B. The Amount In Controversy Exceeds $75,000.

20. This Action also meets the amount in controversy requirement for removal based on diversity jurisdiction. 28 U.S.C. Section 1332(a) authorizes the removal of cases in which there is diversity of citizenship between the parties and the matter in controversy exceeds the sum or value of $75,000.00, exclusive of interest and costs.

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21. In determining whether the amount in controversy exceeds $75,000.00, the Court must presume Plaintiff will prevail on his claims. *Kenneth Rothschild Trust v. Morgan Stanley Dean Witter,* 199 F.Supp.2d 993, 1001 (C.D. Cal. 2002), citing *Burns v. Windsor Ins.* Co., 31 F.3d 1092, 1096 (11th Cir. 1994) (the amount in controversy analysis presumes "plaintiff prevails on liability") and *Angus v. Shiley, Inc.,* 989 F.2d 142, 146 (3rd Cir. 1993) ("the amount in controversy is not measured by the low end of an open-ended claim, but rather by reasonable reading of the value of the rights being litigated."). "The amount in controversy is simply an estimate of the total amount in dispute, not a prospective assessment of defendant's liability." *Lewis v. Verizon Commc'ns, Inc.,* 627 F.3d 395, 401 (9th Cir. 2010). "In that sense, the amount in controversy reflects the maximum recovery the plaintiff could reasonably recover." *Arias v. Residence Inn by Marriott*, 936 F.3d 920, 927 (9th Cir. 2019) (citing *Chavez v. JPMorgan Chase & Co.,* 888 F.3d 413, 417 (9th Cir. 2018) (explaining that the amount in controversy includes all amounts "at stake" in the litigation "whatever the likelihood that [the plaintiff] will actually recover them.").

22. The amount in controversy may include general and special compensatory damages and attorneys' fees recoverable by statute. *Galt G/S v. JSS Scandinavia,* 142 F.3d 1150, 1155-56 (9th Cir. 1998); *Goldberg v. CPC Int'l, Inc.,* 678 F.2d 1365, 1367, *cert denied,* 459 U.S. 945 (9th Cir. 1982) (attorneys' fees may be taken into account to determine jurisdictional amount). The Court may examine the nature of the action and the relief sought, including attorneys' fees. *See, e.g., Simmons v. PCR Technology,* 209 F.Supp.2d 1029, 1035 (N.D. Cal. 2002) (attorneys' fees in individual employment discrimination cases often exceed damages). The Ninth Circuit has made clear that statutory attorneys' fees are included as a basis for determining the jurisdictional amount in controversy. *See Galt,* 142 F.3d at 1155-56. In determining whether the amount in controversy meets the jurisdictional minimum, attorneys' fees are calculable beyond the time of removal. *Simmons,* 209 F.Supp.2d at 1035.

23. Without admitting Plaintiff is entitled to recover any damages or penalties

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SUITE 1100
IRVINE, CA 92614

whatsoever or that Defendant is liable to Plaintiff in any way, based the allegations in the Complaint and the reasonable assumptions to be drawn from those allegations, the amount in controversy with respect to Plaintiff's individual claims exceeds $75,000, the jurisdictional requirement of this Court.

24. Per the Complaint, Plaintiff alleges he suffered lost wages, lost employment benefits, lost career opportunities, emotional distress, and economic harm as a result of Defendant's decision not to hire him. (Compl., ¶¶ 29-30, 42, 48, 53, 58, 63).

25. Plaintiff seeks a host of remedies, including statutory damages or penalties, punitive damages, attorneys' fees, costs, restitution, and injunctive relief. (*Id.,* ¶¶ 37, 43, 48, 64; Prayer for Relief, pp. 16-17).

26. Where, as here, a complaint filed in state court is unclear as to amount in controversy, a removing party need only show it is "more likely than not" that the amount in controversy exceeds $75,000. *Guglielmino v. McKee Foods Corp.,* 506 F.3d 696, 699 (9th Cir. 2007) (quoting *Sanchez v. Monumental Life Ins. Co.,* 102 F.3d 398 (9th Cir. 1996)). When determining whether a civil action exceeds the $75,000 jurisdictional amount in controversy requirement, the Court must presume the plaintiff will prevail on each and every one of his claims. *Kenneth Rothschild Trust, supra,* 199 F.Supp.2d at 1001 (citing *Burns v. Windsor Ins. Co.,* 31 F.3d 1092, 1096 (11th Cir. 1994) (the amount in controversy analysis presumes that "plaintiff prevails on liability.")). General, special, compensatory, and punitive damages, and attorneys' fees that are recoverable by statute may all be included in the jurisdictional amount in controversy calculation. *See, e.g., Galt, supra,* 142 F.3d at 1155, 1156; *Davenport v. Mutual Ben. Health & Acc. Ass'n,* 325 F.3d 785-87 (9th Cir. 1963).

27. Although the Complaint does not explicitly specify the amount in controversy sought by Plaintiff, "it is more likely than not" that the amount in controversy exceeds $75,000.

28. Compensatory damages: Plaintiff alleges that Defendant's conduct caused

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him to suffer economic damages, including lost wages, lost benefits, and lost career opportunities and professional advancement. (Compl., ¶ 29). Accordingly, the operative Complaint seeks compensatory damages for lost wages and other general and special damages (Compl., Prayer for Relief, p. 16). Defendant chose to not hire Plaintiff on or around March 19, 2025 (Compl., ¶ 25) as a part time package handler position. (Declaration of Gabriella Bow ("Bow Decl.") at ¶ 5, Ex. 8, Conditional Offer, pg. 2.) As of the date of his termination, Plaintiff would have earned at least $20.25 as a package handler in this facility in a part time position. (Bow Decl. at ¶ 6, Ex. 9.) Twenty hours per week at $20.25 per hour equates to $405 in earnings per week, not counting overtime. Although Defendant denies Plaintiff is entitled to recover any such damages, assuming *arguendo*, if Plaintiff were to recover lost wages from the time he was denied employment (i.e., March 19, 2025) until the present, this 75-week period between denial of plaintiff's employment and the removal of this action to federal court would equal $30,375 in alleged lost wages. Moreover, if the case proceeds to trial in August 2027, one year from this removal, and Plaintiff remains unemployed, he will be seeking a total of 127-weeks of lost wages, which is approximately $51,435, plus the additional "other compensation" he seeks.[1]

29. In addition, front pay awards in California frequently span a number of years. *See Smith v. Brown-Forman Distillers Corp.*, 196 Cal. App. 3d 503, 518 (1989) (front pay until mandatory retirement age reached); *Rabago-Alvarez v. Dart Industries, Inc.*, 55 Cal. App. 3d 91, 97 (1976) (four years); *Drzewiecki v. H&R Block, Inc.*, 24 Cal. App. 3d 695, 705 (1972) (ten years). Even conservatively estimating that Plaintiff seeks front pay benefits for only the two years after trial (i.e., 104 weeks), the amount of future wages in controversy in this case would total at least an additional $42,120 in wages. Based on Defendant's very conservative assumptions, Plaintiff's claim for lost wages

[1] Courts have found that one year from the date of removal is a "conservative estimate of the trial date" in employment cases. *Fisher v. HNTB Corp.*, 2018 U.S. Dist. LEXIS 205323, at *13 (C.D.Cal. Dec. 3, 2018); *Beltran v. Procare Pharm., LLC*, 2020 U.S. Dist. LEXIS 26098, at *7 (C.D.Cal. Feb. 14, 2020) (finding a one-year prospective trial date appropriate).

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alone is sufficient to satisfy the amount in controversy for purposes of diversity jurisdiction without considering additional damages (i.e., $51,435 in back pay and $42,120 in front pay for a total amount of **$93,555**).

30. Emotional Distress: Plaintiff's claims for emotional distress are likewise properly considered in determining the amount in controversy. In fact, in cases such as the instant action, the amount of controversy may be satisfied by the pleading of several different types of damages in the complaint, even though the exact dollar amount of each damages is not estimated by the removing party. *See Simmons, supra,* 209 F.Supp.2d at 1031-35 (finding that the plaintiff's alleged lost income of $25,600 at the time of removal, included with unspecified amounts for medical expense damages, emotional distress damages, punitive damages, and attorneys' fees anticipated to incur through trial, satisfy the amount in controversy required to establish diversity jurisdiction); *White v. FCI USA, Inc.*, 319 F.3d 672, 674 (5th Cir. 2003) (an employment claim including a "lengthy list of compensatory and punitive damages" including loss of pay, impaired earning capacity, emotional distress, etc. combined with a claim for attorneys' fees and punitive damages, was sufficient to exceed the $75,000 minimum required to establish diversity jurisdiction). Here, Plaintiff repeatedly alleges that he has suffered "severe emotional distress, including anxiety, humiliation, shame, and mental anguish" and seeks recovery for those harms. (Compl., ¶ 29).

31. California employment discrimination cases are illustrative that emotional distress damages alone in employment-related claims may greatly exceed the minimum statutory amount in controversy. For example, a jury in Sacramento County awarded a plaintiff $400,000 for his past pain and suffering in an employment-related action. *Weyhe v. Wal-Mart Stores, Inc.*, 2010 WL 3411462 (July 1, 2010). Similarly, in *Hernandez v. Regents of the University of California*, 2009 WL 6045700 (2009), a jury in Alameda County issued a $266,347 award for pain and suffering to a plaintiff-employee for employment-related claims. Finally, in *Estelle v. Los Angeles County Metropolitan Transportation Authority*, Case No. BC526217 (2015), another Los

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SUITE 1100
IRVINE, CA 92614

Angeles County jury awarded the plaintiff in an employment matter $625,000 in emotional distress damages. Indeed, an award of damages for emotional distress alone can reasonably be anticipated to be in excess of the jurisdictional minimum. *Simmons, supra*, 209 F. Supp. 2d at 1034 (citing case in which an award for pain and suffering in an employment case totaled $3.5 million and recognizing that "emotional distress damages in a successful employment discrimination case may be substantial"). Thus, the amount of controversy, when considering the potential amount of all damages sought by Plaintiff, including emotional distress damages, exceeds $75,000.

32. Statutory Damages: Plaintiff's first cause of action seeks the civil penalty authorized by California Penal Code section 290.46(j)(4)(A) – the greater of Plaintiff's actual damages or $25,000 – for each unlawful use of Plaintiff's sex offender registry information for employment purposes. This statutory minimum alone provides $25,000 toward the amount in controversy.

33. Attorneys' Fees: While Plaintiff seeks an unspecified amount of attorneys' fees, such fees may also be taken into account to determine jurisdictional amounts, if a statute authorizes fees to a successful litigant.[2] *Arias, supra,* 936 F.3d at 927 ("[A] court **must** include future attorneys' fees recoverable by statute or contract when assessing whether the amount-in-controversy requirement is met.") (emphasis added) (internal quotation marks and citations omitted). The measure of fees is that which accrues until the action is resolved. *Simmons, supra,* 209 F.Supp.2d 1029, 1034-35. Indeed, attorney's fees are not limited to those incurred up to removal. *Fritsch v. Swift Transp. Co. of Ariz., LLC*, 899 F.3d 785, 794 (9th Cir. 2018); *Arias, supra*, 936 F.3d at 928. Thus, the Court may examine the nature of the action and the relief sought and take judicial notice of attorney's fee awards in similar cases.

34. Plaintiff alleges causes of action for violations of California Penal Code section 290.46(j)(4)(A), which expressly provides for recovery of attorney fees.

[2] Defendant does not concede that Plaintiff, as a *pro se* litigant, is legally entitled to recover attorney's fees. However, Defendant includes potential future attorney's fees in this calculation solely to account for the possibility that Plaintiff may retain counsel as this matter progresses.

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Plaintiff also alleges violations of the California Investigative Consumer Reporting Agencies Act (ICRAA), which allows a prevailing plaintiff to recover attorney fees pursuant to California Civil Code section 1786.50. The Ninth Circuit recently held "a court must include future [post-removal] attorneys' fees recoverable by statute or contract when assessing whether the amount-in-controversy was met." *Fritsch, supra*, 899 F.3d at 794. The Court may take judicial notice of attorney's fee awards in similar cases. *See, e.g., Simmons*, *supra,* 209 F.Supp.2d at 1035 (noting that attorney's fees in individual employment discrimination cases often exceed damages).

35. Although Plaintiff does not plead FEHA claims, the Complaint asserts employment-related statutory and common-law claims arising from Defendant's alleged refusal to hire Plaintiff after a background-screening process. Representative California employment cases illustrate that attorneys' fees in single-plaintiff employment actions can be substantial. In 2013, the Superior Court of Sacramento County awarded a single plaintiff $367,378.50 in attorneys' fees in an employment matter. *Angel v. Sutter Health et al.*, Case No. 2009-00055279 (2013). Similarly, in 2012, the Orange County Superior Court awarded a single plaintiff $295,535.50 in attorney's fees on another employment matter. *Vargas v. City of Long Beach*, Case No. 30-2009-00126342 (2012). In *Wiley v. Wyndham Vacation Ownership Inc., et al*., Superior Court of Contra Costa County Case No. C05-01191, the Court awarded the plaintiff her attorney's fees and costs in the amount of $1,150,876.

36. Accordingly, Plaintiff's request for statutory attorneys' fees materially increases the amount in controversy. Even using a conservative estimate of **$50,000**, Plaintiff's recoverable attorneys' fees, when added to his claimed statutory damages, lost wages, emotional distress damages, punitive damages, restitution, and injunctive relief, further confirm that the amount in controversy exceeds $75,000.

37. Punitive Damages: It is well established that punitive damages are part of the amount in controversy in a civil action. *Gibson v. Chrysler Corp.,* 261 F.3d 927, 945 (9th Cir. 2001). Plaintiff seeks punitive damages in this matter. (*See* Compl., Prayer

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for Relief, p. 21). Punitive damages are oftentimes calculated as a multiplier of compensatory damages. "To assess the amount of punitive damages that is appropriate in a given case, the court considers the nature of the defendant's wrongdoing, the amount of compensatory damages, and the wealth of the particular defendant." *Am. Gen. Life & Accident Ins. Co. v. Findley*, 2013 U.S. Dist. LEXIS 41644, 48-49 (C.D. Cal. Mar. 15, 2013). The potential punitive damage award against a defendant such as Defendant alone may satisfy the amount in controversy requirement. In *Aucina v. Amoco Oil Co.,* 871 F. Supp. 332 (S.D. Iowa 1994), the defendant employer established that the amount in controversy exceeded the jurisdictional minimum where the former employee asserted claims for lost wages, lost benefits, mental anguish, and punitive damages. The court noted the defendant was a Fortune 500 Company and that [b]ecause the purpose of punitive damages is to capture a defendant's attention and deter others from similar conduct "the plaintiff's claim for punitive damages" might alone exceed the jurisdictional minimum. *Aucina, supra*, 871 F. Supp. at 334.

38. Here, Plaintiff filed a Notice of Amount of Punitive Damages Sought, stating that he "reserves the right to seek $25,000.00 in punitive damages". (Kray Decl., at ¶ 6, Ex. 8). Although Defendant vigorously denies Plaintiff's allegations, if Plaintiff were to prevail on the punitive damages claim, that claim alone could exceed the jurisdictional minimum. Therefore, Plaintiff's claim for punitive damages, if awarded, could exceed the threshold $75,000 amount on its own.

39. Based upon the foregoing, Plaintiff's claims exceed the $75,000 jurisdictional limit of this Court required by the diversity statute. Additionally, as set forth above, this is a civil action between citizens of different states. Consequently, this is a civil action over which this Court has original jurisdiction under 28 U.S.C. § 1332(a) and one that is properly removed to this Court pursuant to 28 U.S.C. §§ 1441 and 1446.

WHEREFORE, pursuant to 28 U.S.C. §§ 1332, 1441 and 1446(b), Defendant removes this case from the California Superior Court for the County of San Joaquin to the United States District Court, Eastern District of California.

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2601 MAIN STREET
SUITE 1100
IRVINE, CA 92614

DATED: August 24, 2026

Respectfully submitted,

/s/ Allison A. Kray
Allison A. Kray
Attorney for Defendant
FEDERAL EXPRESS CORPORATION

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2601 MAIN STREET
SUITE 1100
IRVINE, CA 92614

CERTIFICATE OF SERVICE

Brendan Ngehsi Newanforbi v. Federal Express Corporation

I am a resident of the State of California, over the age of eighteen years, and not a party to the within action. My business address is Federal Express Corporation, 2601 Main Street, Suite 1100, Irvine, California 92614.

On August 24, 2026, I served the within document(s): **DEFENDANT FEDERAL EXPRESS CORPORATION'S PETITION AND NOTICE OF REMOVAL OF CIVIL ACTION UNDER ARTICLE III OF THE U.S. CONSTITUTION AND 28 U.S.C. §§ 1332, 1441 AND 1446**

☑	With the Clerk of the Court for the United States District Court-Eastern District of CA by using the Court's CM/ECF system and that service will be accomplished by the court's CM/ECF system to the person(s) as set forth below.
☐	By transmitting electronically document(s) listed above to the email address(es) listed below.
☑	By placing the document(s) listed above in a sealed envelope with postage thereon fully prepaid, in the United States Mail at Irvine, California addressed as set forth below.
☐	By arranging with First Legal Attorney Service to personally deliver the document(s) listed above to the person(s) at the address(es) set forth below.
☐	By placing the document(s) listed above in a sealed envelope with delivery fees provided for, addressed to the plaintiff as follows for collection by Federal Express for overnight delivery at Federal Express Corporation, 2601 Main Street, Suite 1100, Irvine, California 92614, in accordance with Federal Express Corporation's ordinary business practices.

BRENDAN NGEHSI NEWANFORBI
Plaintiff, In Pro Per
1455 Cat Tail Drive
Stockton, CA 95204
T (209) 801-4442
bnn.cdla@gmail.com
PLAINTIFF, IN PRO PER

☑ *(Federal)* I declare that I am employed in the office of a member of the bar of this court at whose direction the service was made.

Executed on August 24, 2026, at Irvine, California.

/s/ Michele Wilson
Michele Wilson

FEDERAL EXPRESS CORPORATION
2601 MAIN STREET
SUITE 1100
IRVINE, CA 92614

ALLISON A. KRAY, ESQ. (SBN 312544)
allison.kray@fedex.com
FEDERAL EXPRESS CORPORATION
2601 Main Street, Suite 1100
Irvine, California 92614
Telephone: (949) 862-4615
Facsimile: (901) 492-5641

Attorney for Defendant
FEDERAL EXPRESS CORPORATION

UNITED STATES DISTRICT COURT

EASTERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI, Plaintiff, v. FEDERAL EXPRESS CORPORATION, and DOES 1 through 10, inclusive, Defendants.	Case No. **DECLARATION OF ALLISON A. KRAY IN SUPPORT OF DEFENDANT FEDERAL EXPRESS CORPORATION'S PETITION AND NOTICE OF REMOVAL OF CIVIL ACTION UNDER ARTICLE III OF THE U.S. CONSTITUTION and 28 U.S.C. §§1332, 1441 & 1446** Complaint Filed: July 15, 2026 Trial Date: Not Set

DECLARATION OF ALLISON A. KRAY

I, Allison A. Kray, hereby declare and state as follows:

1. I am an attorney licensed to practice in California before this court. I am employed by Federal Express Corporation as Senior Attorney. Unless stated otherwise herein, I have personal knowledge of the following facts and information, and, if called and sworn as a witness herein, I could and would testify competently thereto.

2. I make this declaration in support of Defendant Federal Express Corporation's Petition and Notice of Removal of Civil Action ("Notice of Removal").

3. Attached hereto as **Exhibit 1** is a true and correct copy of the Complaint filed by Plaintiff Brendan Ngehsi Newanforbi, in pro per ("Plaintiff") on July 15, 2026, entitled *Brendan Ngehsi Newanforbi v. Federal Express Corporation, and DOES 1 through 10, inclusive*, in San Joaquin County Superior Court, Case No. STK-CV-UWT-2026-0009118.

4. Attached hereto as **Exhibit 2** is a true and correct copy of the Service of Process Transmittal Summary provided to Federal Express Corporation by CT Corp., Defendant's agent for service of process in California. Defendant Federal Express Corporation received the notice of service on July 24, 2026, and this was the first occasion on which Federal Express Corporation could ascertain the matter was removable to federal court.

5. Attached hereto are true and correct copies of the additional documents filed in the state court action, as follows:

- **Exhibit 3**: 07-15-2026 Summons Issued and Filed
- **Exhibit 4**: 07-15-2026 Civil Case Cover Sheet
- **Exhibit 5**: 07-15-2026 Notice of Case Assignment and Notice of Hearing
- **Exhibit 6:** 07-15-2026 Order on Court Fee Waiver
- **Exhibit 7:** 08-04-2026: Notice of Amount of Punitive Damages Sought

8. Pursuant to 28 U.S.C. § 1446(d), Exhibits 1-7 attached to my Declaration constitute all process, pleadings, and orders filed in this action of which I am aware.

FEDERAL EXPRESS CORPORATION
2601 MAIN STREET
SUITE 1100
IRVINE, CA 92614

Pursuant to 28 U.S.C. § 1446(d), a copy of this Notice of Removal, with all removal papers attached, is being filed with the Clerk of the Superior Court in San Joaquin County and with the Clerk of the Eastern District of California.

I declare under penalty of perjury under the laws of the State of California and the laws of the United States that the foregoing is true and correct and that this Declaration was executed by me this 24th day of August 2026, in Irvine, California.

/s/ Allison A. Kray
ALLISON A. KRAY

FEDERAL EXPRESS CORPORATION
2601 MAIN STREET
SUITE 1100
IRVINE, CA 92614

EXHIBIT 1

BRENDAN NGEHSI NEWANFORBI
Plaintiff, In Pro Per
1455 Cat Tail Drive
Stockton, CA 95204
Telephone: (209) 801-4442
E-mail: bnn.cdla@gmail.com

FILED
SUPERIOR COURT SAN JOAQUIN
2026 JUL 15 A 9:46
STEPHANIE BOHRER, CLERK
BY _____ DEPUTY

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF SAN JOAQUIN

STK-CV-UWT-2026-9118

BRENDAN NGEHSI NEWANFORBI, Plaintiff, v. **FEDERAL EXPRESS CORPORATION, and DOES 1 through 10, inclusive,** Defendants.	Case No. _____ **COMPLAINT FOR DAMAGES** (1) Violation of Cal. Penal Code § 290.46(j)(2)(E); (2) Failure to Hire in Violation of Public Policy; (3) Violation of ICRAA (Cal. Civ. Code § 1786 et seq.); (4) Invasion of Privacy (Cal. Const., Art. I, § 1); (5) Negligence Per Se; (6) Unlawful Business Practices (Bus. & Prof. Code § 17200 et seq.) *[UNLIMITED CIVIL]* *[JURY TRIAL DEMANDED]*

INTRODUCTION

1. This is a civil action for damages and other relief arising from Defendant Federal Express Corporation's ('FedEx') violation of California Penal Code section 290.46(j)(2)(E), which categorically prohibits any person or entity from using information derived from California's Megan's Law public sex offender registry for purposes relating to employment.

2. In connection with Plaintiff BRENDAN NGEHSI NEWANFORBI's application for employment, FedEx procured a background screening report through its third-party background

check vendor, First Advantage. On information and belief, that report disclosed Plaintiff's status as a registrant on California's sex offender registry. On information and belief, FedEx accessed and used that registry information—in whole or in substantial part—as the basis for its decision to deny Plaintiff employment, in direct violation of Penal Code section 290.46(j)(2)(E).

3. The Legislature enacted section 290.46(j) to protect registered sex offenders from a specific category of harm: the use of Megan's Law registry data—which is made publicly available for a narrow protective purpose—to deny them employment. The civil remedy provision, section 290.46(j)(4)(A), authorizes a civil action for the greater of actual damages or $25,000, plus attorney fees. Plaintiff seeks those remedies, together with all other relief this Court deems just and proper.

PARTIES

4. Plaintiff BRENDAN NGEHSI NEWANFORBI ('Plaintiff') is a natural person who, at all times relevant to this action, resided in Stockton, California, County of San Joaquin, State of California.

5. Defendant FEDERAL EXPRESS CORPORATION ('FedEx' or 'Defendant') is a Delaware corporation authorized to do business and doing business in the State of California, including in San Joaquin County. At all times relevant herein, FedEx was an 'employer' within the meaning of California law and regularly conducted employment activities and background screening operations in California.

6. The true names and capacities of Defendants Does 1 through 10, inclusive, are unknown to Plaintiff, who therefore sues said Defendants by such fictitious names pursuant to Code of Civil Procedure section 474. On information and belief, each Doe Defendant is in some manner legally responsible for the damages and injuries alleged herein. Plaintiff will seek leave to

amend this complaint when the true names and capacities of Does 1 through 10 are ascertained.

JURISDICTION AND VENUE

7. This Court has unlimited civil jurisdiction over this action because the amount in controversy exceeds $35,000, exclusive of interest and costs.

8. Venue is proper in San Joaquin County pursuant to Code of Civil Procedure section 395(a) because Plaintiff resides in the City of Stockton, San Joaquin County, California, and the injuries giving rise to this action were suffered by Plaintiff in this County.

9. This Court has personal jurisdiction over FedEx because FedEx is authorized to transact, and does transact, business in the State of California, including in San Joaquin County, and has purposefully availed itself of the privilege of conducting activities in this State, thereby subjecting itself to the jurisdiction of California courts.

FACTUAL ALLEGATIONS

A. General Allegations Regarding California Penal Code Section 290.46(j)

10. California Penal Code section 290.46 requires certain sex offenders to register with law enforcement and authorizes the California Department of Justice to make certain registrant information available to the public through an online database commonly referred to as the 'Megan's Law website.'

11. Section 290.46(j)(1) provides that a person is authorized to use information disclosed pursuant to that section only to protect a person at risk. Section 290.46(j)(2) enumerates uses of such information that are prohibited. Subsection (j)(2)(E) specifically prohibits use of Megan's

Law registry information 'for purposes relating to . . . [e]mployment.'

12. The prohibition in section 290.46(j)(2)(E) is categorical and admits no exception for private employers, background check companies, or any private actor making employment decisions. The Legislature's determination was explicit: sex offender registry information accessible through the Megan's Law website may not be used in employment decisions.

13. California Penal Code section 290.46(j)(4)(A) provides a civil remedy for violations: 'Any use of information disclosed pursuant to this section for a purpose other than that provided by paragraph (1) or another provision of law is punishable as a misdemeanor, and subject to a civil action for actual damages or twenty-five thousand dollars ($25,000), whichever is greater, by any person whose information was used for the prohibited purpose. The person whose information was wrongfully used may also bring an action for attorney's fees.'

14. Background screening companies that compile investigative consumer reports for employment purposes routinely access and include sex offender registry information in their reports. On information and belief, these companies also routinely include statutory warnings apprising employers of the prohibitions in section 290.46(j)(2)(E). Despite such warnings, some employers nonetheless use the registry information in their employment decisions, in direct violation of the statute.

15. FedEx is a large national employer and one of the country's largest ground parcel delivery networks, operating hundreds of facilities throughout California. FedEx regularly orders background screening reports from third-party vendors—including First Advantage—in connection with employment applications. On information and belief, FedEx's background screening policies and practices result in the regular access to, and use of, sex offender registry information in employment decisions, notwithstanding the prohibition in Penal Code section 290.46(j)(2)(E).

B. Plaintiff's Application for Employment with FedEx

16. In or around early 2025, Plaintiff submitted an employment application to FedEx for a position in FedEx's delivery and package handling operations in California. The background check was procured by FedEx through a human resources function identified as 'FEDEX GROUND HR.' Plaintiff was qualified for the position sought.

17. As part of its standard pre-employment screening process, FedEx initiated a background check on Plaintiff through First Advantage (operating under the domain 'fadv.com'), a third-party investigative consumer reporting agency that provides background screening services to employers nationwide.

18. On or about March 10, 2025, Plaintiff received, at his email address, an electronic notification from First Advantage (sent from DoNotReply@fadv.com) bearing the subject line: 'FedEx Pre-Adverse Employment Action Notice.' The notification advised Plaintiff to review the pre-adverse action notification for his background screening report for 'FEDEX GROUND HR' via a link to First Advantage's portal.

19. The pre-adverse action notice sent to Plaintiff on March 10, 2025 constitutes the pre-adverse action notification required under the federal Fair Credit Reporting Act, 15 U.S.C. section 1681b(b)(3)(A), and the California Investigative Consumer Reporting Agencies Act, Civil Code section 1786.40, before an employer takes adverse action based in whole or in part on a background screening report.

C. Background Check Process and Contents of the Screening Report

20. On information and belief, First Advantage conducted a background screening report

on Plaintiff and transmitted that report to FedEx on or before March 10, 2025—the date of the pre-adverse action notice.

21. On information and belief, the background screening report prepared by First Advantage and provided to FedEx contained information derived from California's Megan's Law sex offender registry maintained pursuant to Penal Code section 290.46, identifying Plaintiff as a registrant on that registry.

22. On information and belief, the First Advantage background screening report transmitted to FedEx included a statutory notice or disclaimer informing FedEx of the existence and requirements of California Penal Code section 290.46(j)(2)(E) and expressly warning FedEx that the sex offender registry information contained in the report was prohibited from use in employment decisions. Background screening companies routinely include such statutory warnings in reports provided to California employers.

23. Despite any such warning, on information and belief, FedEx reviewed, accessed, and considered the sex offender registry information contained in the First Advantage background screening report in making its employment decision regarding Plaintiff.

24. On or about March 10, 2025, Plaintiff received a link via First Advantage's portal through which Plaintiff could access the background screening report. That link has since expired, and Plaintiff no longer has access to the underlying report or its attachments. Plaintiff therefore pleads on information and belief as to the specific contents of the report insofar as those contents relate to sex offender registry information and the basis for FedEx's adverse action.

D. The Adverse Employment Action

25. On or about March 19, 2025—nine (9) days after the pre-adverse action

notice—Plaintiff received, at his email address, a second electronic notification from First Advantage (sent from DoNotReply@fadv.com) bearing the subject line: 'FedEx Adverse Employment Action Notice.' This notification confirmed that FedEx had taken final adverse action against Plaintiff, definitively denying him employment.

26. On information and belief, FedEx's decision to take final adverse action against Plaintiff—denying him employment—was based, in whole or in substantial part, on Plaintiff's status as a registrant on California's sex offender registry as disclosed in the First Advantage background screening report.

27. FedEx did not provide Plaintiff with any written communication identifying any basis for the adverse action other than the background screening report. No other disqualifying information known to Plaintiff existed in his application or background report that would provide an independent, lawful basis for denying him employment.

28. On information and belief, absent FedEx's access to and use of Plaintiff's sex offender registry status, Plaintiff would have been offered and would have accepted the employment position with FedEx.

E. Damages

29. As a direct and proximate result of FedEx's unlawful conduct, as alleged herein, Plaintiff has suffered and continues to suffer substantial damages, including: (a) lost wages and employment benefits that Plaintiff would have earned but for FedEx's unlawful failure to hire him; (b) lost career opportunity and professional advancement in the parcel delivery and logistics industry; and (c) severe emotional distress, including anxiety, humiliation, shame, and mental anguish arising from being unlawfully denied employment because of his registry status.

30. Plaintiff has experienced significant financial hardship as a direct result of losing the FedEx employment opportunity, which caused immediate and ongoing economic harm to Plaintiff and his household.

31. The acts and omissions of FedEx described herein were undertaken willfully, with knowledge that Plaintiff's registry information was protected from employment use under California law, and in conscious disregard of Plaintiff's statutory and constitutional rights.

FIRST CAUSE OF ACTION

Violation of California Penal Code Section 290.46(j)(2)(E)

Unlawful Use of Sex Offender Registry Information in Employment Decisions

(Against All Defendants)

32. Plaintiff incorporates by reference paragraphs 1 through 31 as though fully set forth herein.

33. California Penal Code section 290.46(j)(1) authorizes persons to use information disclosed pursuant to that section only to protect a person at risk. Section 290.46(j)(2)(E) categorically prohibits any use of such information 'for purposes relating to . . . [e]mployment.' There is no exception for private employers making general hiring decisions.

34. Plaintiff is a registrant on California's sex offender registry within the meaning of Penal Code section 290.46. On information and belief, Plaintiff's registry status was disclosed in the background screening report compiled by First Advantage and provided to FedEx in or about March 2025.

35. On information and belief, FedEx accessed, reviewed, and used the sex offender registry information contained in Plaintiff's First Advantage background screening report for purposes relating to employment—specifically, in making the decision to deny Plaintiff employment on or about March 19, 2025.

36. FedEx's use of Plaintiff's sex offender registry information for employment purposes was not authorized under Penal Code section 290.46(j)(1) or any other provision of law. The position at issue was in FedEx's general delivery and package handling operations, and no facts suggest that any specifically identified vulnerable person at risk was exposed to any particular

risk from Plaintiff's employment. The narrow 'protect a person at risk' exception does not apply to general delivery and logistics roles.

37. Pursuant to Penal Code section 290.46(j)(4)(A), Plaintiff is entitled to bring a civil action against FedEx for actual damages or $25,000, whichever is greater, plus attorney fees and costs.

SECOND CAUSE OF ACTION

Failure to Hire in Violation of Public Policy

(Tameny Claim)

(Against All Defendants)

38. Plaintiff incorporates by reference paragraphs 1 through 31 as though fully set forth herein.

39. California recognizes a tort claim for wrongful failure to hire where an employer refuses to hire an applicant for reasons that violate a fundamental public policy of the State of California. (See Tameny v. Atlantic Richfield Co. (1980) 27 Cal.3d 167; City of Moorpark v. Superior Court (1998) 18 Cal.4th 1143.)

40. California Penal Code section 290.46(j)(2)(E) embodies a fundamental public policy of the State of California. The Legislature has expressly declared, in a statute codified in the Penal Code and backed by civil and criminal penalties, that employers must not use sex offender registry information in employment decisions. This prohibition reflects a legislative determination that the unrestricted use of Megan's Law data in employment gatekeeping is harmful to individual registrants and to the public interest in meaningful rehabilitation and reintegration.

41. On information and belief, FedEx denied Plaintiff employment based, in whole or in substantial part, on Plaintiff's status as a registrant on California's sex offender registry, as disclosed in the First Advantage background screening report, in direct violation of the public policy embodied in Penal Code section 290.46(j)(2)(E).

42. By refusing to hire Plaintiff for a reason that violates the fundamental public policy of the State of California, FedEx is liable to Plaintiff for all damages resulting from its unlawful failure to hire, including lost wages and benefits, emotional distress, and other damages according to proof at trial.

43. FedEx's conduct was willful, malicious, and in conscious disregard of Plaintiff's rights and of the public policy of the State of California. Plaintiff is therefore entitled to an award of punitive damages pursuant to Civil Code section 3294.

THIRD CAUSE OF ACTION

Violation of the Investigative Consumer Reporting Agencies Act

(Cal. Civ. Code § 1786 et seq.)

(Against All Defendants)

44. Plaintiff incorporates by reference paragraphs 1 through 31 as though fully set forth herein.

45. California's Investigative Consumer Reporting Agencies Act, Civil Code section 1786 et seq. ('ICRAA'), regulates the procurement and use of investigative consumer reports, including background screening reports, for employment purposes in California. On information and belief, First Advantage is an 'investigative consumer reporting agency' within the meaning of Civil Code

section 1786.2(d), and the background screening report prepared by First Advantage and provided to FedEx constitutes an 'investigative consumer report' within the meaning of Civil Code section 1786.2(c).

46. On information and belief, FedEx's procurement and use of the First Advantage background screening report, which contained sex offender registry information prohibited from employment use under Penal Code section 290.46(j)(2)(E), constituted a violation of ICRAA and the public policies incorporated therein. The inclusion of legally prohibited information in an investigative consumer report prepared for employment purposes, and its use in employment decision-making, violates the spirit and purpose of ICRAA.

47. On information and belief, FedEx failed to comply with one or more of the following requirements of the Investigative Consumer Reporting Agencies Act: (a) the requirement under Civil Code section 1786.16 to provide Plaintiff with a clear and conspicuous written disclosure that an investigative consumer report would be obtained, and to obtain Plaintiff's written consent; (b) the requirement to provide Plaintiff with a complete copy of all investigative consumer reports obtained, including any compliance materials, concurrent with or prior to the adverse action; and/or (c) other requirements of ICRAA governing the procurement and use of investigative consumer reports in employment decisions.

48. As a direct and proximate result of FedEx's violations of ICRAA, Plaintiff suffered actual damages, including loss of the employment opportunity, lost wages, and emotional distress. Pursuant to Civil Code section 1786.50, Plaintiff is entitled to actual damages, and, for willful noncompliance, punitive damages not to exceed $5,000 per violation, plus attorney fees and costs.

FOURTH CAUSE OF ACTION

Invasion of Privacy

(Cal. Const., Art. I, § 1)

(Against All Defendants)

49. Plaintiff incorporates by reference paragraphs 1 through 31 as though fully set forth herein.

50. The California Constitution, Article I, Section 1, guarantees every person an inalienable right to privacy. The Legislature has recognized a legally protected privacy interest in sex offender registry information by strictly limiting its authorized use under Penal Code section 290.46(j) to the singular purpose of protecting persons at risk, and by prohibiting all other uses—including use in employment decisions.

51. On information and belief, FedEx accessed, reviewed, and used information from California's sex offender registry pertaining to Plaintiff for the unauthorized and prohibited purpose of making an employment decision, in violation of Penal Code section 290.46(j)(2)(E). This unauthorized access and use constituted a serious invasion of Plaintiff's legally protected privacy interest.

52. FedEx's invasion of Plaintiff's privacy was not justified by any legitimate, competing interest of sufficient weight to override the statutory and constitutional privacy protections. The position at issue—in general parcel delivery and package handling operations—did not implicate any specific risk to any identified vulnerable person. The invasion was not authorized by law.

53. As a direct and proximate result of FedEx's invasion of Plaintiff's privacy, Plaintiff suffered humiliation, embarrassment, emotional distress, and other damages in an amount to be proven at trial.

FIFTH CAUSE OF ACTION

Negligence Per Se

(Against All Defendants)

54. Plaintiff incorporates by reference paragraphs 1 through 31 as though fully set forth herein.

55. California Penal Code section 290.46(j)(2)(E) is a statute enacted for the protection of a specific class of persons—registrants on the Megan's Law sex offender registry—against the specific harm of having their registry information used to deprive them of employment opportunities. Plaintiff is a member of the class of persons the statute was designed to protect, and the harm Plaintiff suffered—denial of employment, lost wages, and emotional distress—is precisely the type of harm the statute was enacted to prevent.

56. On information and belief, FedEx violated Penal Code section 290.46(j)(2)(E) by accessing and using Plaintiff's sex offender registry information in making its decision to deny Plaintiff employment on or about March 19, 2025.

57. Pursuant to Evidence Code section 669, FedEx's violation of Penal Code section 290.46(j)(2)(E) constitutes negligence per se. FedEx's negligence was a proximate cause of Plaintiff's damages.

58. As a direct and proximate result of FedEx's negligence per se, Plaintiff has suffered damages in an amount to be proven at trial, including lost wages, lost employment benefits, and emotional distress.

SIXTH CAUSE OF ACTION

Unlawful Business Practices

(Bus. & Prof. Code § 17200 et seq.)

(Against All Defendants)

59. Plaintiff incorporates by reference paragraphs 1 through 31 as though fully set forth herein.

60. California Business and Professions Code section 17200 prohibits 'any unlawful, unfair or fraudulent business act or practice.' Each prong is independently actionable.

61. FedEx's conduct as alleged herein constitutes an 'unlawful' business practice because it violates California Penal Code section 290.46(j)(2)(E), a statute prohibiting the use of sex offender registry information in employment decisions. An employer's act that violates a statute is per se unlawful under Business and Professions Code section 17200.

62. FedEx's conduct also constitutes an 'unfair' business practice because it harms employment applicants—including Plaintiff—and the public interest in the enforcement of legislative prohibitions, without any justification that outweighs those harms. FedEx's scale of operations in California, and its systematic background screening practices, result in a pattern of conduct that collectively harms a class of employment applicants in violation of established California law.

63. As a direct and proximate result of FedEx's unlawful and unfair business practices, Plaintiff has suffered loss of money and property, including lost wages and employment benefits, constituting injury in fact and loss of money or property causally connected to FedEx's unlawful conduct, within the meaning of Business and Professions Code section 17204.

64. Plaintiff is entitled to restitution of lost wages and benefits, injunctive relief prohibiting FedEx from continuing to use sex offender registry information in employment decisions in California, and all other equitable relief authorized by Business and Professions Code section 17203, together with costs and attorney fees as authorized by applicable law.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff BRENDAN NGEHSI NEWANFORBI prays for judgment against Defendant FEDERAL EXPRESS CORPORATION and Does 1 through 10, inclusive, as follows:

1. For actual damages, including lost wages, lost employment benefits, and compensation for emotional distress, humiliation, and mental anguish, according to proof at trial;

2. For the civil penalty authorized by Penal Code section 290.46(j)(4)(A)—the greater of Plaintiff's actual damages or twenty-five thousand dollars ($25,000)—for each unlawful use of Plaintiff's sex offender registry information for employment purposes;

3. For attorney fees pursuant to Penal Code section 290.46(j)(4)(A);

4. For general and special damages on all causes of action, according to proof at trial;

5. For punitive damages pursuant to Civil Code section 3294 based on Defendant's willful, malicious, and oppressive conduct in conscious disregard of Plaintiff's rights;

6. For actual damages, punitive damages, and attorney fees pursuant to Civil Code section 1786.50 for violations of the Investigative Consumer Reporting Agencies Act;

7. For restitution and injunctive relief pursuant to Business and Professions Code section 17203, including an order enjoining Defendant from using sex offender registry information in employment decisions in California;

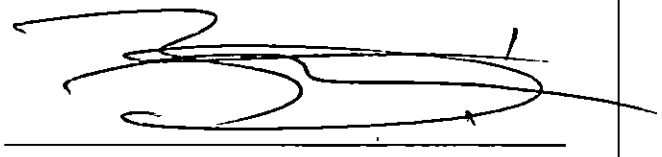
8. For costs of suit incurred herein; and

9. For such other and further relief as this Court deems just and proper.

DEMAND FOR JURY TRIAL

Plaintiff BRENDAN NGEHSI NEWANFORBI hereby demands a trial by jury on all causes of action and all issues triable by jury in the above-entitled action.

Dated: July 15, 2026



BRENDAN NGEHSI NEWANFORBI

Plaintiff, In Pro Per

VERIFICATION

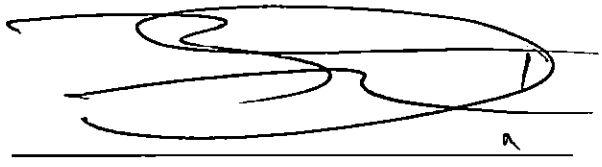
I, BRENDAN NGEHSI NEWANFORBI, declare:

I am the Plaintiff in the above-entitled action. I have read the foregoing Complaint for Damages and know its contents. The matters stated therein are true of my own personal knowledge, except as to those matters stated on information and belief, and as to those matters I believe them to be true.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on July 15, 2026,

at Stockton, California.



BRENDAN NGEHSI NEWANFORBI

Plaintiff, In Pro Per

EXHIBIT 2

Wolters Kluwer

CT Corporation
Service of Process Notification
07/24/2026
CT Log Number 552873969

Service of Process Transmittal Summary

TO: Litigation Department
Federal Express Corporation
3620 HACKS CROSS RD, 3RD FLOOR, BUILDING B
MEMPHIS, TN 38125

RE: **Process Served in California**

FOR: Federal Express Corporation (Domestic State: DE)

ENCLOSED ARE COPIES OF LEGAL PROCESS RECEIVED BY THE STATUTORY AGENT OF THE ABOVE COMPANY AS FOLLOWS:

TITLE OF ACTION:	Re: BRENDAN NGEHSI NEWANFORBI // To: Federal Express Corporation
DOCUMENT(S) SERVED:	Summons, Complaint, Verification, Notice
COURT/AGENCY:	San Joaquin County - Superior Court - Stockton, CA Case # STKCVUWT20269118
NATURE OF ACTION:	Employee Litigation
PROCESS SERVED ON:	C T Corporation System, GLENDALE, CA
DATE/METHOD OF SERVICE:	By Process Server on 07/24/2026 at 09:31
JURISDICTION SERVED:	California
APPEARANCE OR ANSWER DUE:	Within 30 days after this summons and legal papers are served on you (Document(s) may contain additional answer dates)
ATTORNEY(S)/SENDER(S):	BRENDAN NGEHSI NEWANFORBI 1455 Cat Tail Drive Stockton, CA 95204 209-801-4442
ACTION ITEMS:	CT has retained the current log, Retain Date: 07/27/2026, Expected Purge Date: 08/01/2026 Image SOP Email Notification, Litigation Department stacey.stephens@fedex.com Email Notification, Cynthia Schwind cynthia.schwind@fedex.com Email Notification, Kathy Miller khmiller@fedex.com Email Notification, Donna Moore donnamoore@fedex.com Email Notification, Gabriel Hernandez gabrielhernandez@fedex.com Email Notification, Paula Cates pdcates@fedex.com
REGISTERED AGENT CONTACT:	C T Corporation System 330 N BRAND BLVD STE 700 GLENDALE, CA 91203 8775647529

Wolters Kluwer

CT Corporation
Service of Process Notification
07/24/2026
CT Log Number 552873969

MajorAccountTeam2@wolterskluwer.com

The information contained in this Transmittal is provided by CT for quick reference only. It does not constitute a legal opinion, and should not otherwise be relied on, as to the nature of action, the amount of damages, the answer date, or any other information contained in the included documents. The recipient(s) of this form is responsible for reviewing and interpreting the included documents and taking appropriate action, including consulting with its legal and other advisors as necessary. CT disclaims all liability for the information contained in this form, including for any omissions or inaccuracies that may be contained therein.

PROCESS SERVER DELIVERY DETAILS

Date: Fri, Jul 24, 2026
Server Name: DROP SERVICE

Entity Served	FEDERAL EXPRESS CORPORATION
Case Number	STKCVUWT20269118
Jurisdiction	CA

Inserts		

SUM-100

SUMMONS
(CITACION JUDICIAL)

FOR COURT USE ONLY
(SOLO PARA USO DE LA CORTE)

FILED
SUPERIOR COURT SAN JOAQUIN
2026 JUL 15 A 9:46
STEPHANIE BOHRER, CLERK
BY ~~MIA STIPE~~ DEPUTY

NOTICE TO DEFENDANT: Federal Express Corporation, and DOES 1 through 10, inclusive
(AVISO AL DEMANDADO):

YOU ARE BEING SUED BY PLAINTIFF:
(LO ESTÁ DEMANDANDO EL DEMANDANTE):
Brendan Ngehsi Newanforbi

NOTICE! You have been sued. The court may decide against you without your being heard unless you respond within 30 days. Read the information below.

You have 30 CALENDAR DAYS after this summons and legal papers are served on you to file a written response at this court and have a copy served on the plaintiff. A letter or phone call will not protect you. Your written response must be in proper legal form if you want the court to hear your case. There may be a court form that you can use for your response. You can find these court forms and more information at the California Courts Online Self-Help Center (*www.courtinfo.ca.gov/selfhelp*), your county law library, or the courthouse nearest you. If you cannot pay the filing fee, ask the court clerk for a fee waiver form. If you do not file your response on time, you may lose the case by default, and your wages, money, and property may be taken without further warning from the court.

There are other legal requirements. You may want to call an attorney right away. If you do not know an attorney, you may want to call an attorney referral service. If you cannot afford an attorney, you may be eligible for free legal services from a nonprofit legal services program. You can locate these nonprofit groups at the California Legal Services Web site (*www.lawhelpcalifornia.org*), the California Courts Online Self-Help Center (*www.courtinfo.ca.gov/selfhelp*), or by contacting your local court or county bar association. **NOTE:** The court has a statutory lien for waived fees and costs on any settlement or arbitration award of $10,000 or more in a civil case. The court's lien must be paid before the court will dismiss the case. ***¡AVISO!*** *Lo han demandado. Si no responde dentro de 30 días, la corte puede decidir en su contra sin escuchar su versión. Lea la información a continuación.*

Tiene 30 DÍAS DE CALENDARIO después de que le entreguen esta citación y papeles legales para presentar una respuesta por escrito en esta corte y hacer que se entregue una copia al demandante. Una carta o una llamada telefónica no lo protegen. Su respuesta por escrito tiene que estar en formato legal correcto si desea que procesen su caso en la corte. Es posible que haya un formulario que usted pueda usar para su respuesta. Puede encontrar estos formularios de la corte y más información en el Centro de Ayuda de las Cortes de California (www.sucorte.ca.gov), en la biblioteca de leyes de su condado o en la corte que le quede más cerca. Si no puede pagar la cuota de presentación, pida al secretario de la corte que le dé un formulario de exención de pago de cuotas. Si no presenta su respuesta a tiempo, puede perder el caso por incumplimiento y la corte le podrá quitar su sueldo, dinero y bienes sin más advertencia.

Hay otros requisitos legales. Es recomendable que llame a un abogado inmediatamente. Si no conoce a un abogado, puede llamar a un servicio de remisión a abogados. Si no puede pagar a un abogado, es posible que cumpla con los requisitos para obtener servicios legales gratuitos de un programa de servicios legales sin fines de lucro. Puede encontrar estos grupos sin fines de lucro en el sitio web de California Legal Services, (www.lawhelpcalifornia.org), en el Centro de Ayuda de las Cortes de California, (www.sucorte.ca.gov) o poniéndose en contacto con la corte o el colegio de abogados locales. AVISO: Por ley, la corte tiene derecho a reclamar las cuotas y los costos exentos por imponer un gravamen sobre cualquier recuperación de $10,000 ó más de valor recibida mediante un acuerdo o una concesión de arbitraje en un caso de derecho civil. Tiene que pagar el gravamen de la corte antes de que la corte pueda desechar el caso.

The name and address of the court is: San Joaquin County Superior Court
(El nombre y dirección de la corte es):
180 E. Weber Avenue
Stockton, CA 95202

CASE NUMBER.
(Número del Caso):
STK-CV-UWT-2026-9118

The name, address, and telephone number of plaintiff's attorney, or plaintiff without an attorney, is:
(El nombre, la dirección y el número de teléfono del abogado del demandante, o del demandante que no tiene abogado, es):
Brendan Ngehsi Newanforbi, 1455 Cat Tail Drive Stockton, CA 95204 (209) 801-4442

DATE: *(Fecha)* JUL 15 2026 STEPHANIE BOHRER Clerk, by *(Secretario)* MIA STIPE , Deputy *(Adjunto)*

(For proof of service of this summons, use Proof of Service of Summons *(form POS-010).)*
(Para prueba de entrega de esta citatión use el formulario Proof of Service of Summons, *(POS-010)).*

[SEAL]

NOTICE TO THE PERSON SERVED: You are served
1. ☐ as an individual defendant.
2. ☐ as the person sued under the fictitious name of *(specify):*
3. ☑ on behalf of *(specify):* Federal Express Corporation
   under: ☑ CCP 416.10 (corporation) ☐ CCP 416.60 (minor)
   ☐ CCP 416.20 (defunct corporation) ☐ CCP 416.70 (conservatee)
   ☐ CCP 416.40 (association or partnership) ☐ CCP 416.90 (authorized person)
   ☐ other *(specify):*
4. ☑ by personal delivery on *(date):*

Form Adopted for Mandatory Use
Judicial Council of California
SUM-100 [Rev July 1, 2009]

SUMMONS

Code of Civil Procedure §§ 412.20, 465
www.courts.ca.gov

BRENDAN NGEHSI NEWANFORBI
Plaintiff, In Pro Per
1455 Cat Tail Drive
Stockton, CA 95204
Telephone: (209) 801-4442
E-mail: bnn.cdla@gmail.com

FILED
SUPERIOR COURT SAN JOAQUIN
2026 JUL 15 A 9:46
STEPHANIE BOHRER, CLERK
BY MIA STIPE
DEPUTY

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF SAN JOAQUIN

STK-CV-UWT-2026-9118

BRENDAN NGEHSI NEWANFORBI,

Plaintiff,

v.

FEDERAL EXPRESS CORPORATION, and DOES 1 through 10, inclusive,

Defendants.

Case No.

COMPLAINT FOR DAMAGES

(1) Violation of Cal. Penal Code § 290.46(j)(2)(E);
(2) Failure to Hire in Violation of Public Policy;
(3) Violation of ICRAA (Cal. Civ. Code § 1786 et seq.);
(4) Invasion of Privacy (Cal. Const., Art. I, § 1);
(5) Negligence Per Se;
(6) Unlawful Business Practices (Bus. & Prof. Code § 17200 et seq.)

[UNLIMITED CIVIL]
[JURY TRIAL DEMANDED]

INTRODUCTION

1. This is a civil action for damages and other relief arising from Defendant Federal Express Corporation's ('FedEx') violation of California Penal Code section 290.46(j)(2)(E), which categorically prohibits any person or entity from using information derived from California's Megan's Law public sex offender registry for purposes relating to employment.

2. In connection with Plaintiff BRENDAN NGEHSI NEWANFORBI's application for employment, FedEx procured a background screening report through its third-party background

check vendor, First Advantage. On information and belief, that report disclosed Plaintiff's status as a registrant on California's sex offender registry. On information and belief, FedEx accessed and used that registry information—in whole or in substantial part—as the basis for its decision to deny Plaintiff employment, in direct violation of Penal Code section 290.46(j)(2)(E).

3. The Legislature enacted section 290.46(j) to protect registered sex offenders from a specific category of harm: the use of Megan's Law registry data—which is made publicly available for a narrow protective purpose—to deny them employment. The civil remedy provision, section 290.46(j)(4)(A), authorizes a civil action for the greater of actual damages or $25,000, plus attorney fees. Plaintiff seeks those remedies, together with all other relief this Court deems just and proper.

PARTIES

4. Plaintiff BRENDAN NGEHSI NEWANFORBI ('Plaintiff') is a natural person who, at all times relevant to this action, resided in Stockton, California, County of San Joaquin, State of California.

5. Defendant FEDERAL EXPRESS CORPORATION ('FedEx' or 'Defendant') is a Delaware corporation authorized to do business and doing business in the State of California, including in San Joaquin County. At all times relevant herein, FedEx was an 'employer' within the meaning of California law and regularly conducted employment activities and background screening operations in California.

6. The true names and capacities of Defendants Does 1 through 10, inclusive, are unknown to Plaintiff, who therefore sues said Defendants by such fictitious names pursuant to Code of Civil Procedure section 474. On information and belief, each Doe Defendant is in some manner legally responsible for the damages and injuries alleged herein. Plaintiff will seek leave to

amend this complaint when the true names and capacities of Does 1 through 10 are ascertained.

JURISDICTION AND VENUE

7. This Court has unlimited civil jurisdiction over this action because the amount in controversy exceeds $35,000, exclusive of interest and costs.

8. Venue is proper in San Joaquin County pursuant to Code of Civil Procedure section 395(a) because Plaintiff resides in the City of Stockton, San Joaquin County, California, and the injuries giving rise to this action were suffered by Plaintiff in this County.

9. This Court has personal jurisdiction over FedEx because FedEx is authorized to transact, and does transact, business in the State of California, including in San Joaquin County, and has purposefully availed itself of the privilege of conducting activities in this State, thereby subjecting itself to the jurisdiction of California courts.

FACTUAL ALLEGATIONS

A. General Allegations Regarding California Penal Code Section 290.46(j)

10. California Penal Code section 290.46 requires certain sex offenders to register with law enforcement and authorizes the California Department of Justice to make certain registrant information available to the public through an online database commonly referred to as the 'Megan's Law website.'

11. Section 290.46(j)(1) provides that a person is authorized to use information disclosed pursuant to that section only to protect a person at risk. Section 290.46(j)(2) enumerates uses of such information that are prohibited. Subsection (j)(2)(E) specifically prohibits use of Megan's

Law registry information 'for purposes relating to . . . [e]mployment.'

12. The prohibition in section 290.46(j)(2)(E) is categorical and admits no exception for private employers, background check companies, or any private actor making employment decisions. The Legislature's determination was explicit: sex offender registry information accessible through the Megan's Law website may not be used in employment decisions.

13. California Penal Code section 290.46(j)(4)(A) provides a civil remedy for violations: 'Any use of information disclosed pursuant to this section for a purpose other than that provided by paragraph (1) or another provision of law is punishable as a misdemeanor, and subject to a civil action for actual damages or twenty-five thousand dollars ($25,000), whichever is greater, by any person whose information was used for the prohibited purpose. The person whose information was wrongfully used may also bring an action for attorney's fees.'

14. Background screening companies that compile investigative consumer reports for employment purposes routinely access and include sex offender registry information in their reports. On information and belief, these companies also routinely include statutory warnings apprising employers of the prohibitions in section 290.46(j)(2)(E). Despite such warnings, some employers nonetheless use the registry information in their employment decisions, in direct violation of the statute.

15. FedEx is a large national employer and one of the country's largest ground parcel delivery networks, operating hundreds of facilities throughout California. FedEx regularly orders background screening reports from third-party vendors—including First Advantage—in connection with employment applications. On information and belief, FedEx's background screening policies and practices result in the regular access to, and use of, sex offender registry information in employment decisions, notwithstanding the prohibition in Penal Code section 290.46(j)(2)(E).

B. Plaintiff's Application for Employment with FedEx

16. In or around early 2025, Plaintiff submitted an employment application to FedEx for a position in FedEx's delivery and package handling operations in California. The background check was procured by FedEx through a human resources function identified as 'FEDEX GROUND HR.' Plaintiff was qualified for the position sought.

17. As part of its standard pre-employment screening process, FedEx initiated a background check on Plaintiff through First Advantage (operating under the domain 'fadv.com'), a third-party investigative consumer reporting agency that provides background screening services to employers nationwide.

18. On or about March 10, 2025, Plaintiff received, at his email address, an electronic notification from First Advantage (sent from DoNotReply@fadv.com) bearing the subject line: 'FedEx Pre-Adverse Employment Action Notice.' The notification advised Plaintiff to review the pre-adverse action notification for his background screening report for 'FEDEX GROUND HR' via a link to First Advantage's portal.

19. The pre-adverse action notice sent to Plaintiff on March 10, 2025 constitutes the pre-adverse action notification required under the federal Fair Credit Reporting Act, 15 U.S.C. section 1681b(b)(3)(A), and the California Investigative Consumer Reporting Agencies Act, Civil Code section 1786.40, before an employer takes adverse action based in whole or in part on a background screening report.

C. Background Check Process and Contents of the Screening Report

20. On information and belief, First Advantage conducted a background screening report

on Plaintiff and transmitted that report to FedEx on or before March 10, 2025—the date of the pre-adverse action notice.

21. On information and belief, the background screening report prepared by First Advantage and provided to FedEx contained information derived from California's Megan's Law sex offender registry maintained pursuant to Penal Code section 290.46, identifying Plaintiff as a registrant on that registry.

22. On information and belief, the First Advantage background screening report transmitted to FedEx included a statutory notice or disclaimer informing FedEx of the existence and requirements of California Penal Code section 290.46(j)(2)(E) and expressly warning FedEx that the sex offender registry information contained in the report was prohibited from use in employment decisions. Background screening companies routinely include such statutory warnings in reports provided to California employers.

23. Despite any such warning, on information and belief, FedEx reviewed, accessed, and considered the sex offender registry information contained in the First Advantage background screening report in making its employment decision regarding Plaintiff.

24. On or about March 10, 2025, Plaintiff received a link via First Advantage's portal through which Plaintiff could access the background screening report. That link has since expired, and Plaintiff no longer has access to the underlying report or its attachments. Plaintiff therefore pleads on information and belief as to the specific contents of the report insofar as those contents relate to sex offender registry information and the basis for FedEx's adverse action.

D. The Adverse Employment Action

25. On or about March 19, 2025—nine (9) days after the pre-adverse action

notice—Plaintiff received, at his email address, a second electronic notification from First Advantage (sent from DoNotReply@fadv.com) bearing the subject line: 'FedEx Adverse Employment Action Notice.' This notification confirmed that FedEx had taken final adverse action against Plaintiff, definitively denying him employment.

26. On information and belief, FedEx's decision to take final adverse action against Plaintiff—denying him employment—was based, in whole or in substantial part, on Plaintiff's status as a registrant on California's sex offender registry as disclosed in the First Advantage background screening report.

27. FedEx did not provide Plaintiff with any written communication identifying any basis for the adverse action other than the background screening report. No other disqualifying information known to Plaintiff existed in his application or background report that would provide an independent, lawful basis for denying him employment.

28. On information and belief, absent FedEx's access to and use of Plaintiff's sex offender registry status, Plaintiff would have been offered and would have accepted the employment position with FedEx.

E. Damages

29. As a direct and proximate result of FedEx's unlawful conduct, as alleged herein, Plaintiff has suffered and continues to suffer substantial damages, including: (a) lost wages and employment benefits that Plaintiff would have earned but for FedEx's unlawful failure to hire him; (b) lost career opportunity and professional advancement in the parcel delivery and logistics industry; and (c) severe emotional distress, including anxiety, humiliation, shame, and mental anguish arising from being unlawfully denied employment because of his registry status.

30. Plaintiff has experienced significant financial hardship as a direct result of losing the FedEx employment opportunity, which caused immediate and ongoing economic harm to Plaintiff and his household.

31. The acts and omissions of FedEx described herein were undertaken willfully, with knowledge that Plaintiff's registry information was protected from employment use under California law, and in conscious disregard of Plaintiff's statutory and constitutional rights.

FIRST CAUSE OF ACTION

Violation of California Penal Code Section 290.46(j)(2)(E)

Unlawful Use of Sex Offender Registry Information in Employment Decisions

(Against All Defendants)

32. Plaintiff incorporates by reference paragraphs 1 through 31 as though fully set forth herein.

33. California Penal Code section 290.46(j)(1) authorizes persons to use information disclosed pursuant to that section only to protect a person at risk. Section 290.46(j)(2)(E) categorically prohibits any use of such information 'for purposes relating to . . . [e]mployment.' There is no exception for private employers making general hiring decisions.

34. Plaintiff is a registrant on California's sex offender registry within the meaning of Penal Code section 290.46. On information and belief, Plaintiff's registry status was disclosed in the background screening report compiled by First Advantage and provided to FedEx in or about March 2025.

35. On information and belief, FedEx accessed, reviewed, and used the sex offender registry information contained in Plaintiff's First Advantage background screening report for purposes relating to employment—specifically, in making the decision to deny Plaintiff employment on or about March 19, 2025.

36. FedEx's use of Plaintiff's sex offender registry information for employment purposes was not authorized under Penal Code section 290.46(j)(1) or any other provision of law. The position at issue was in FedEx's general delivery and package handling operations, and no facts suggest that any specifically identified vulnerable person at risk was exposed to any particular

risk from Plaintiff's employment. The narrow 'protect a person at risk' exception does not apply to general delivery and logistics roles.

37. Pursuant to Penal Code section 290.46(j)(4)(A), Plaintiff is entitled to bring a civil action against FedEx for actual damages or $25,000, whichever is greater, plus attorney fees and costs.

SECOND CAUSE OF ACTION

Failure to Hire in Violation of Public Policy

(Tameny Claim)

(Against All Defendants)

38. Plaintiff incorporates by reference paragraphs 1 through 31 as though fully set forth herein.

39. California recognizes a tort claim for wrongful failure to hire where an employer refuses to hire an applicant for reasons that violate a fundamental public policy of the State of California. (See Tameny v. Atlantic Richfield Co. (1980) 27 Cal.3d 167; City of Moorpark v. Superior Court (1998) 18 Cal.4th 1143.)

40. California Penal Code section 290.46(j)(2)(E) embodies a fundamental public policy of the State of California. The Legislature has expressly declared, in a statute codified in the Penal Code and backed by civil and criminal penalties, that employers must not use sex offender registry information in employment decisions. This prohibition reflects a legislative determination that the unrestricted use of Megan's Law data in employment gatekeeping is harmful to individual registrants and to the public interest in meaningful rehabilitation and reintegration.

41. On information and belief, FedEx denied Plaintiff employment based, in whole or in substantial part, on Plaintiff's status as a registrant on California's sex offender registry, as disclosed in the First Advantage background screening report, in direct violation of the public policy embodied in Penal Code section 290.46(j)(2)(E).

42. By refusing to hire Plaintiff for a reason that violates the fundamental public policy of the State of California, FedEx is liable to Plaintiff for all damages resulting from its unlawful failure to hire, including lost wages and benefits, emotional distress, and other damages according to proof at trial.

43. FedEx's conduct was willful, malicious, and in conscious disregard of Plaintiff's rights and of the public policy of the State of California. Plaintiff is therefore entitled to an award of punitive damages pursuant to Civil Code section 3294.

THIRD CAUSE OF ACTION

Violation of the Investigative Consumer Reporting Agencies Act

(Cal. Civ. Code § 1786 et seq.)

(Against All Defendants)

44. Plaintiff incorporates by reference paragraphs 1 through 31 as though fully set forth herein.

45. California's Investigative Consumer Reporting Agencies Act, Civil Code section 1786 et seq. ('ICRAA'), regulates the procurement and use of investigative consumer reports, including background screening reports, for employment purposes in California. On information and belief, First Advantage is an 'investigative consumer reporting agency' within the meaning of Civil Code

section 1786.2(d), and the background screening report prepared by First Advantage and provided to FedEx constitutes an 'investigative consumer report' within the meaning of Civil Code section 1786.2(c).

46. On information and belief, FedEx's procurement and use of the First Advantage background screening report, which contained sex offender registry information prohibited from employment use under Penal Code section 290.46(j)(2)(E), constituted a violation of ICRAA and the public policies incorporated therein. The inclusion of legally prohibited information in an investigative consumer report prepared for employment purposes, and its use in employment decision-making, violates the spirit and purpose of ICRAA.

47. On information and belief, FedEx failed to comply with one or more of the following requirements of the Investigative Consumer Reporting Agencies Act: (a) the requirement under Civil Code section 1786.16 to provide Plaintiff with a clear and conspicuous written disclosure that an investigative consumer report would be obtained, and to obtain Plaintiff's written consent; (b) the requirement to provide Plaintiff with a complete copy of all investigative consumer reports obtained, including any compliance materials, concurrent with or prior to the adverse action; and/or (c) other requirements of ICRAA governing the procurement and use of investigative consumer reports in employment decisions.

48. As a direct and proximate result of FedEx's violations of ICRAA, Plaintiff suffered actual damages, including loss of the employment opportunity, lost wages, and emotional distress. Pursuant to Civil Code section 1786.50, Plaintiff is entitled to actual damages, and, for willful noncompliance, punitive damages not to exceed $5,000 per violation, plus attorney fees and costs.

FOURTH CAUSE OF ACTION

Invasion of Privacy

(Cal. Const., Art. I, § 1)

(Against All Defendants)

49. Plaintiff incorporates by reference paragraphs 1 through 31 as though fully set forth herein.

50. The California Constitution, Article I, Section 1, guarantees every person an inalienable right to privacy. The Legislature has recognized a legally protected privacy interest in sex offender registry information by strictly limiting its authorized use under Penal Code section 290.46(j) to the singular purpose of protecting persons at risk, and by prohibiting all other uses—including use in employment decisions.

51. On information and belief, FedEx accessed, reviewed, and used information from California's sex offender registry pertaining to Plaintiff for the unauthorized and prohibited purpose of making an employment decision, in violation of Penal Code section 290.46(j)(2)(E). This unauthorized access and use constituted a serious invasion of Plaintiff's legally protected privacy interest.

52. FedEx's invasion of Plaintiff's privacy was not justified by any legitimate, competing interest of sufficient weight to override the statutory and constitutional privacy protections. The position at issue—in general parcel delivery and package handling operations—did not implicate any specific risk to any identified vulnerable person. The invasion was not authorized by law.

53. As a direct and proximate result of FedEx's invasion of Plaintiff's privacy, Plaintiff suffered humiliation, embarrassment, emotional distress, and other damages in an amount to be proven at trial.

FIFTH CAUSE OF ACTION

Negligence Per Se

(Against All Defendants)

54. Plaintiff incorporates by reference paragraphs 1 through 31 as though fully set forth herein.

55. California Penal Code section 290.46(j)(2)(E) is a statute enacted for the protection of a specific class of persons—registrants on the Megan's Law sex offender registry—against the specific harm of having their registry information used to deprive them of employment opportunities. Plaintiff is a member of the class of persons the statute was designed to protect, and the harm Plaintiff suffered—denial of employment, lost wages, and emotional distress—is precisely the type of harm the statute was enacted to prevent.

56. On information and belief, FedEx violated Penal Code section 290.46(j)(2)(E) by accessing and using Plaintiff's sex offender registry information in making its decision to deny Plaintiff employment on or about March 19, 2025.

57. Pursuant to Evidence Code section 669, FedEx's violation of Penal Code section 290.46(j)(2)(E) constitutes negligence per se. FedEx's negligence was a proximate cause of Plaintiff's damages.

58. As a direct and proximate result of FedEx's negligence per se, Plaintiff has suffered damages in an amount to be proven at trial, including lost wages, lost employment benefits, and emotional distress.

SIXTH CAUSE OF ACTION

Unlawful Business Practices

(Bus. & Prof. Code § 17200 et seq.)

(Against All Defendants)

59. Plaintiff incorporates by reference paragraphs 1 through 31 as though fully set forth herein.

60. California Business and Professions Code section 17200 prohibits 'any unlawful, unfair or fraudulent business act or practice.' Each prong is independently actionable.

61. FedEx's conduct as alleged herein constitutes an 'unlawful' business practice because it violates California Penal Code section 290.46(j)(2)(E), a statute prohibiting the use of sex offender registry information in employment decisions. An employer's act that violates a statute is per se unlawful under Business and Professions Code section 17200.

62. FedEx's conduct also constitutes an 'unfair' business practice because it harms employment applicants—including Plaintiff—and the public interest in the enforcement of legislative prohibitions, without any justification that outweighs those harms. FedEx's scale of operations in California, and its systematic background screening practices, result in a pattern of conduct that collectively harms a class of employment applicants in violation of established California law.

63. As a direct and proximate result of FedEx's unlawful and unfair business practices, Plaintiff has suffered loss of money and property, including lost wages and employment benefits, constituting injury in fact and loss of money or property causally connected to FedEx's unlawful conduct, within the meaning of Business and Professions Code section 17204.

64. Plaintiff is entitled to restitution of lost wages and benefits, injunctive relief prohibiting FedEx from continuing to use sex offender registry information in employment decisions in California, and all other equitable relief authorized by Business and Professions Code section 17203, together with costs and attorney fees as authorized by applicable law.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff BRENDAN NGEHSI NEWANFORBI prays for judgment against Defendant FEDERAL EXPRESS CORPORATION and Does 1 through 10, inclusive, as follows:

1. For actual damages, including lost wages, lost employment benefits, and compensation for emotional distress, humiliation, and mental anguish, according to proof at trial;

2. For the civil penalty authorized by Penal Code section 290.46(j)(4)(A)—the greater of Plaintiff's actual damages or twenty-five thousand dollars ($25,000)—for each unlawful use of Plaintiff's sex offender registry information for employment purposes;

3. For attorney fees pursuant to Penal Code section 290.46(j)(4)(A);

4. For general and special damages on all causes of action, according to proof at trial;

5. For punitive damages pursuant to Civil Code section 3294 based on Defendant's willful, malicious, and oppressive conduct in conscious disregard of Plaintiff's rights;

6. For actual damages, punitive damages, and attorney fees pursuant to Civil Code section 1786.50 for violations of the Investigative Consumer Reporting Agencies Act;

7. For restitution and injunctive relief pursuant to Business and Professions Code section 17203, including an order enjoining Defendant from using sex offender registry information in employment decisions in California;

8. For costs of suit incurred herein; and

9. For such other and further relief as this Court deems just and proper.

DEMAND FOR JURY TRIAL

Plaintiff BRENDAN NGEHSI NEWANFORBI hereby demands a trial by jury on all causes of action and all issues triable by jury in the above-entitled action.

Dated: July 15, 2026



BRENDAN NGEHSI NEWANFORBI

Plaintiff, In Pro Per

VERIFICATION

I, BRENDAN NGEHSI NEWANFORBI, declare:

I am the Plaintiff in the above-entitled action. I have read the foregoing Complaint for Damages and know its contents. The matters stated therein are true of my own personal knowledge, except as to those matters stated on information and belief, and as to those matters I believe them to be true.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on July 15, 2026,

at Stockton, California.



BRENDAN NGEHSI NEWANFORBI

Plaintiff, In Pro Per

SUPERIOR COURT OF CALIFORNIA

County of San Joaquin
180 E Weber Avenue
Stockton, CA 95202

NOTICE OF CASE ASSIGNMENT AND NOTICE OF HEARING

Case Number: **STK-CV-UWT-2026-0009118**

A Case Management Conference has been scheduled for your case as indicated below. A copy of this information must be provided with the complaint or petition, and with any cross-complaint that names a new party to the underlying action. Disregard hearing date if that date has expired.

Hearing: Case Management Conference	**Date: 01/14/2027**	**Time: 8:45 AM Department: 10B**
JUDGE	**COURT LOCATION**	**PHONE Numbers:**
THIS CASE HAS BEEN ASSIGNED TO JUDGE BLANCA BANUELOS IN DEPARTMENT 10B FOR ALL PURPOSES, INCLUDING TRIAL.	**Stockton**	**Stockton: 209-992-5693** **Lodi: 209-992-5522**

[X] ADR & Scheduling Information is available on court website @ sjcourts.org/self-help

1. You must:

   a. **Serve** all named defendant's and file proofs of service on those defendants with the court Within 60 days of the filing of the complaint. (CRC 3.110)

   b. **File and serve** a completed Case Management Conference Statement (use of JC form CM-110 is mandatory) at least 15 days before the Case Management Conference.

   c. **Meet and Confer,** in person or by telephone, to consider each of the issues identified in CRC 3.727 no later than 30 calendar days before the date set for the Case Management Conference. (CRC 3.724)

   d. **Collection cases** are managed pursuant to CRC 3.740.

2. Case Management Conferences, Law and Motion and Ex Partes will be held remotely unless ordered otherwise. For telephonic appearance phone numbers, information and instructions visit @ https://www.sjcourts.org/divisions/civil/ .

3. If this case was eFiled, the plaintiff/petitioner or their attorney must access their copy of this notice and the issued summons for service from the court's case management system at the following link: cms.sjcourts.org/fullcourtweb/start.do.

4. Courtesy Copies: Courtesy copies must be submitted as outlined in Local Rule 3-117. Courtesy copies (only) may be placed in the drop boxes located on the 10th and 11th floor. Courtesy copies can also be placed in the drop box located outside of the courthouse.

Visit our website @ www.sjcourts.org for more information regarding civil cases, local rules and forms.

Date: 07/15/2026 Mia Stipe, Deputy Clerk

NOTICE OF CASE ASSIGNMENT AND NOTICE OF HEARING

EXHIBIT 3

SUM-100

SUMMONS
(CITACION JUDICIAL)

FILED
SUPERIOR COURT SAN JOAQUIN
2026 JUL 15 A 9:48
STEPHANIE BOHRER, CLERK
BY DEPUTY

FOR COURT USE ONLY
(SOLO PARA USO DE LA CORTE)

NOTICE TO DEFENDANT: Federal Express Corporation, and ~~DOES 1~~ through 10, inclusive
(AVISO AL DEMANDADO):

YOU ARE BEING SUED BY PLAINTIFF:
(LO ESTÁ DEMANDANDO EL DEMANDANTE):
Brendan Ngehsi Newanforbi

NOTICE! You have been sued. The court may decide against you without your being heard unless you respond within 30 days. Read the information below.

You have 30 CALENDAR DAYS after this summons and legal papers are served on you to file a written response at this court and have a copy served on the plaintiff. A letter or phone call will not protect you. Your written response must be in proper legal form if you want the court to hear your case. There may be a court form that you can use for your response. You can find these court forms and more information at the California Courts Online Self-Help Center (*www.courtinfo.ca.gov/selfhelp*), your county law library, or the courthouse nearest you. If you cannot pay the filing fee, ask the court clerk for a fee waiver form. If you do not file your response on time, you may lose the case by default, and your wages, money, and property may be taken without further warning from the court.

There are other legal requirements. You may want to call an attorney right away. If you do not know an attorney, you may want to call an attorney referral service. If you cannot afford an attorney, you may be eligible for free legal services from a nonprofit legal services program. You can locate these nonprofit groups at the California Legal Services Web site (*www.lawhelpcalifornia.org*), the California Courts Online Self-Help Center (*www.courtinfo.ca.gov/selfhelp*), or by contacting your local court or county bar association. **NOTE:** The court has a statutory lien for waived fees and costs on any settlement or arbitration award of $10,000 or more in a civil case. The court's lien must be paid before the court will dismiss the case.
¡AVISO! *Lo han demandado. Si no responde dentro de 30 días, la corte puede decidir en su contra sin escuchar su versión. Lea la información a continuación.*

Tiene 30 DÍAS DE CALENDARIO después de que le entreguen esta citación y papeles legales para presentar una respuesta por escrito en esta corte y hacer que se entregue una copia al demandante. Una carta o una llamada telefónica no lo protegen. Su respuesta por escrito tiene que estar en formato legal correcto si desea que procesen su caso en la corte. Es posible que haya un formulario que usted pueda usar para su respuesta. Puede encontrar estos formularios de la corte y más información en el Centro de Ayuda de las Cortes de California (www.sucorte.ca.gov), en la biblioteca de leyes de su condado o en la corte que le quede más cerca. Si no puede pagar la cuota de presentación, pida al secretario de la corte que le dé un formulario de exención de pago de cuotas. Si no presenta su respuesta a tiempo, puede perder el caso por incumplimiento y la corte le podrá quitar su sueldo, dinero y bienes sin más advertencia.

Hay otros requisitos legales. Es recomendable que llame a un abogado inmediatamente. Si no conoce a un abogado, puede llamar a un servicio de remisión a abogados. Si no puede pagar a un abogado, es posible que cumpla con los requisitos para obtener servicios legales gratuitos de un programa de servicios legales sin fines de lucro. Puede encontrar estos grupos sin fines de lucro en el sitio web de California Legal Services, (www.lawhelpcalifornia.org), en el Centro de Ayuda de las Cortes de California, (www.sucorte.ca.gov) o poniéndose en contacto con la corte o el colegio de abogados locales. AVISO: Por ley, la corte tiene derecho a reclamar las cuotas y los costos exentos por imponer un gravamen sobre cualquier recuperación de $10,000 ó más de valor recibida mediante un acuerdo o una concesión de arbitraje en un caso de derecho civil. Tiene que pagar el gravamen de la corte antes de que la corte pueda desechar el caso.

The name and address of the court is: San Joaquin County Superior Court
(El nombre y dirección de la corte es):
180 E. Weber Avenue
Stockton, CA 95202

CASE NUMBER (Número): STK-CV-UWJ-2026-9118

The name, address, and telephone number of plaintiff's attorney, or plaintiff without an attorney, is:
(El nombre, la dirección y el número de teléfono del abogado del demandante, o del demandante que no tiene abogado, es):
Brendan Ngehsi Newanforbi 1455 East Jahn Drive Stockton, CA 95204 (209) 801-4448

DATE: 7/15/26 Clerk, by STEPHANIE BOHRER, Deputy
(Fecha) *(Secretario)* *(Adjunto)*

(For proof of service of this summons, use Proof of Service of Summons *(form POS-010).)*
(Para prueba de entrega de esta citatión use el formulario Proof of Service of Summons, *(POS-010)).*

[SEAL] SUPERIOR COURT OF CALIFORNIA COUNTY OF SAN JOAQUIN

NOTICE TO THE PERSON SERVED: You are served
1. ☐ as an individual defendant.
2. ☐ as the person sued under the fictitious name of *(specify):*
3. ☐ on behalf of *(specify):*
   under: ☐ CCP 416.10 (corporation) ☐ CCP 416.60 (minor)
   ☐ CCP 416.20 (defunct corporation) ☐ CCP 416.70 (conservatee)
   ☐ CCP 416.40 (association or partnership) ☐ CCP 416.90 (authorized person)
   ☐ other *(specify):*
4. ☐ by personal delivery on *(date):*

Form Adopted for Mandatory Use
Judicial Council of California
SUM-100 [Rev. July 1, 2009]

SUMMONS

Code of Civil Procedure §§ 412.20, 465
www.courts.ca.gov

For your protection and privacy, please press the Clear

EXHIBIT 4

CM-010

ATTORNEY OR PARTY WITHOUT ATTORNEY	STATE BAR NUMBER:	FOR COURT USE ONLY
NAME: Brendan Ngehsi Newanforbi		FILED SUPERIOR COURT SAN JOAQUIN
FIRM NAME:		2026 JUL 15 A 9:46
STREET ADDRESS: 1455 Cat Tail Drive		STEPHANIE BOHRER, CLERK
CITY: Stockton	STATE: CA ZIP CODE: 95204	BY DEPUTY
TELEPHONE NO.: (209) 801-4442	FAX NO.:	
EMAIL ADDRESS: bnn.cdl@gmail.com		
ATTORNEY FOR (name):		

SUPERIOR COURT OF CALIFORNIA, COUNTY OF San Joaquin
STREET ADDRESS: 180 E. Weber Avenue
MAILING ADDRESS: 180 E. Weber Avenue
CITY AND ZIP CODE: Stockton, CA 95202
BRANCH NAME: Stockton Courthouse

CASE NAME: Newanforbi v. Federal Express Corporation

STK-CV-UWT-2026-9118

CIVIL CASE COVER SHEET

☒ **Unlimited** (Amount demanded exceeds $35,000)
☐ **Limited** (Amount demanded is $35,000 or less)

Complex Case Designation

☐ Counter ☐ Joinder

Filed with first appearance by defendant (Cal. Rules of Court, rule 3.402)

JUDGE:
DEPT.:

Items 1–6 below must be completed (see instructions on page 2 and examples on page 3).

1. Check **one** box below for the case type that best describes this case:

Auto Tort
- ☐ Auto (22)
- ☐ Uninsured motorist (46)

Asbestos
- ☐ Asbestos (04)

Other PI/PD/WD (Personal Injury/Property Damage/Wrongful Death) Tort
- ☐ Product liability (24)
- ☐ Medical malpractice (45)
- ☐ Other PI/PD/WD (23)

Non-PI/PD/WD (Other) Tort
- ☐ Business tort/Unfair business practice (07)
- ☐ Civil rights (08)
- ☐ Defamation (13)
- ☐ Fraud (16)
- ☐ Intellectual property (19)
- ☐ Professional negligence (25)
- ☐ Other non-PI/PD/WD tort (35)

Employment
- ☒ Wrongful termination (36)
- ☐ Other employment (15)

Contract
- ☐ Breach of contract/warranty (06)
- ☐ Song-Beverly Act: Motor Vehicle Lemon Law (49)
- ☐ Rule 3.740 collections (09)
- ☐ Other collections (09)
- ☐ Insurance coverage (18)
- ☐ Other contract (37)

Real Property
- ☐ Eminent domain/Inverse condemnation (14)
- ☐ Wrongful eviction (33)
- ☐ Other real property (26)

Unlawful Detainer
- ☐ Commercial (31)
- ☐ Residential (32)
- ☐ Drugs (38)

Judicial Review
- ☐ Asset forfeiture (05)
- ☐ Petition re arbitration award (11)
- ☐ Writ of mandate (02)
- ☐ Other judicial review (39)

Employment Development Department (EDD)
- ☐ EDD decision review (48)

Provisionally Complex Civil Litigation (Cal. Rules of Court, rules 3.400–3.404)
- ☐ Antitrust/Trade regulation (03)
- ☐ Construction defect (10)
- ☐ Mass tort (40)
- ☐ Securities litigation (28)
- ☐ Environmental/Toxic tort (30)
- ☐ Comprehensive groundwater adjudication (47)
- ☐ Insurance coverage claims arising from the above listed provisionally complex case types (41)

Enforcement of Judgment
- ☐ Enforcement of judgment (20)

Miscellaneous Civil Complaint
- ☐ RICO (27)
- ☐ Other complaint *(not specified above)* (42)

Miscellaneous Civil Petition
- ☐ Partnership and corporate governance (21)
- ☐ Other petition *(not specified above)* (43)

2. Is this case complex under rule 3.400 of the California Rules of Court? ☐ Yes ☒ No
   If the case is complex, mark the factors requiring exceptional judicial management:
   a. ☐ Large number of separately represented parties
   b. ☐ Extensive motion practice raising difficult or novel issues that will be time-consuming to resolve
   c. ☐ Substantial amount of documentary evidence
   d. ☐ Large number of witnesses
   e. ☐ Coordination with related actions pending in one or more courts in other counties, states, or countries, or in a federal court
   f. ☐ Substantial postjudgment judicial supervision
3. Remedies sought *(check all that apply):*
   a. ☒ monetary
   b. ☒ nonmonetary; declaratory or injunctive relief
   c. ☒ punitive
4. Number of causes of action *(specify):*
5. Is this case a class action suit? ☐ Yes ☒ No
6. If there are any known related cases, file and serve a notice of related case. *(You may use form CM-015.)*

Date: July 15, 2026

Brendan Ngehsi Newanforbi
Type or print name

Signature of party or attorney for party

NOTICE

- Plaintiff must file this cover sheet with the first paper filed in the action or proceeding (except small claims cases or cases filed under the Probate Code, Family Code, or Welfare and Institutions Code). (Cal. Rules of Court, rule 3.220.) Failure to file may result in sanctions.
- File this cover sheet in addition to any cover sheet required by local court rule.
- If this case is complex under rule 3.400 et seq. of the California Rules of Court, or a collections case under rule 3.740, you must serve a copy of this cover sheet on all other parties to the action or proceeding. (Cal. Rules of Court, rule 3.220.)
- Unless this is a collections case under rule 3.740 or a complex case, this cover sheet will be used for statistical purposes only.

INSTRUCTIONS ON HOW TO COMPLETE THE COVER SHEET

To Plaintiffs and Others Filing First Papers. If you are filing a first paper (for example, a complaint) in a civil case, you **must** complete and file, along with your first paper, the Civil Case Cover Sheet contained on pages 1 and 2. This information will be used to compile statistics about the types and numbers of cases filed. You must complete items 1 through 6 on the sheet. In item 1, you must check **one** box for the case type that best describes the case. If the case fits both a general and a more specific type of case listed in item 1, check the more specific one. If the case has multiple causes of action, check the box that best indicates the **primary** cause of action. To assist you in completing the sheet, examples of the cases that belong under each case type in item 1 are provided on page 3 of this form. A cover sheet must be filed only with your initial paper. Failure to file a cover sheet with the first paper filed in a civil case may subject a party, its counsel, or both to sanctions under rules 2.30 and 3.220 of the California Rules of Court.

To Parties in Rule 3.740 Collections Cases. A "collections case" under rule 3.740 of the California Rules of Court is defined as an action for recovery of money owed in a sum stated to be certain that is not more than $35,000, exclusive of interest and attorney's fees, arising from a transaction in which property, services, or money was acquired on credit. A collections case does not include an action seeking the following: (1) tort damages, (2) punitive damages, (3) recovery of real property, (4) recovery of personal property, or (5) a prejudgment writ of attachment. The identification of a case as a rule 3.740 collections case on this form means that it will be exempt from the general time-for-service requirements and case management rules, unless a defendant files a responsive pleading. A rule 3.740 collections case will be subject to the requirements for service and obtaining a judgment in rule 3.740.

To Parties in Complex Cases. In complex cases only, parties must also use the Civil Case Cover Sheet to designate whether the case is complex. If a plaintiff believes the case is complex under rule 3.400 of the California Rules of Court, this must be indicated by completing the appropriate boxes in items 1 and 2. If a plaintiff designates a case as complex, the cover sheet must be served with the complaint on all parties to the action. A defendant may file and serve no later than the time of its first appearance a joinder in the plaintiff's designation, a counter-designation that the case is not complex, or, if the plaintiff has made no designation, a designation that the case is complex.

SEE PAGE 3 FOR INFORMATION PURPOSES ONLY.

CASE TYPES AND EXAMPLES

The list below provides explanations and examples for the case type checkboxes listed in item 1 on this form. The lists of examples below are not meant to be exhaustive, and some case types may have causes of action not listed here.

Auto Tort
- Auto (22)–Personal Injury/Property Damage/Wrongful Death
- Uninsured Motorist *(if the case involves an uninsured motorist claim subject to arbitration, check this item instead of Auto)* (46)

Asbestos
- Asbestos (04)
  - Asbestos Property Damage
  - Asbestos Personal Injury/Wrongful Death

Other PI/PD/WD (Personal Injury/Property Damage/Wrongful Death) Tort
- Product Liability *(not asbestos or environmental/toxic tort)* (24)
- Medical Malpractice (45)
  - Medical Malpractice–Physicians & Surgeons
  - Other Professional Health Care Malpractice
- Other PI/PD/WD (23)
  - Premises Liability (e.g., slip and fall)
  - Intentional Bodily Injury/PD/WD (e.g., assault, vandalism)
  - Intentional Infliction of Emotional Distress
  - Negligent Infliction of Emotional Distress
  - Other PI/PD/WD

Non-PI/PD/WD (Other) Tort
- Business Tort/Unfair Business Practice (07)
- Civil Rights (e.g., discrimination, false arrest) *(not civil harassment)* (08)
- Defamation (e.g., slander, libel) (13)
- Fraud *(other than contract)* (16)
- Intellectual Property (19)
- Professional Negligence (25)
  - Legal Malpractice
  - Other Professional Malpractice *(not medical)*
- Other Non-PI/PD/WD Tort (35)

Employment
- Wrongful Termination (36)
- Other Employment (15)

Contract
- Breach of Contract/Warranty (06)
  - Breach of Rental/Lease Contract *(not unlawful detainer or wrongful eviction)*
  - Contract/Warranty Breach–Seller Plaintiff *(not fraud)*
  - Negligent Breach of Contract/Warranty
  - Other Breach of Contract/Warranty
- Song-Beverly Act: Motor Vehicle Lemon Law *(check this item if the case involves a Song-Beverly Act claim regarding a motor vehicle)* (49)
- Rule 3.740 Collections *(as defined in Cal. Rules of Court, rule 3.740(a))* (09)
- Other Collections (e.g., money owed, open book accounts, promissory note) (09)
- Insurance Coverage *(not provisionally complex)* (18)
  - Auto Subrogation
  - Other Coverage
- Other Contract (37)
  - Contractual Fraud
  - Other Contract Dispute

Real Property
- Eminent Domain/Inverse Condemnation (14)
- Wrongful Eviction (33)
- Other Real Property (e.g., quiet title) (26)
  - Writ of Possession of Real Property
  - Mortgage Foreclosure
  - Quiet Title
  - Other Real Property *(not unlawful detainer)*

Unlawful Detainer
- Commercial (31)
- Residential (32)
- Drugs *(if the case involves illegal drugs, check this item; otherwise, choose Commercial or Residential)* (38)

Judicial Review
- Asset Forfeiture (05)
- Petition re Arbitration Award (11)
- Writ of Mandate (02)
  - Writ–Administrative Mandamus
  - Writ–Mandamus on Limited Court Case Matter
  - Writ–Other Limited Court Case Review
- Other Judicial Review (39)
  - Review of Health Officer Order
  - Notice of Appeal–Labor Commissioner Appeals

Employment Development Department (EDD)
- EDD Decision Review *(if the case involves an Employment Development Department decision, check this item instead of wrongful termination or other employment)* (48)

Provisionally Complex Civil Litigation (Cal. Rules of Court, rules 3.400–3.404)
- Antitrust/Trade Regulation (03)
- Construction Defect (10)
- Mass Tort (40)
- Securities Litigation (28)
- Environmental/Toxic Tort (30)
- Comprehensive Groundwater Adjudication (47)
- Insurance Coverage Claims *(arising from provisionally complex case type listed above)* (41)

Enforcement of Judgment
- Enforcement of Judgment (20)
  - Abstract of Judgment (Out of County)
  - Confession of Judgment *(non-domestic relations)*
  - Sister-State Judgment
  - Administrative Agency Award
  - Petition/Certification of Entry of Judgment on Unpaid Taxes
  - Other Enforcement of Judgment Case

Miscellaneous Civil Complaint
- RICO (27)
- Other Complaint *(not specified above)* (42)
  - Declaratory Relief Only
  - Injunctive Relief Only *(non-harassment)*
  - Mechanic's Lien
  - Other Commercial Complaint Case *(non-tort/non-complex)*
  - Other Civil Complaint *(non-tort/non-complex)*

Miscellaneous Civil Petition
- Partnership and Corporate Governance (21)
- Other Petition *(not specified above)* (43)
  - Civil Harassment
  - Workplace Violence
  - Elder/Dependent Adult Abuse
  - Election Contest
  - Petition for Name Change
  - Petition for Relief From Government Claim Requirement
  - Other Civil Petition

For your protection and privacy, please press the Clear button after you have printed the form.

Print Save Clear

EXHIBIT 5

SUPERIOR COURT OF CALIFORNIA

County of San Joaquin
180 E Weber Avenue
Stockton, CA 95202

NOTICE OF CASE ASSIGNMENT AND NOTICE OF HEARING

Case Number: **STK-CV-UWT-2026-0009118**

A Case Management Conference has been scheduled for your case as indicated below. A copy of this information must be provided with the complaint or petition, and with any cross-complaint that names a new party to the underlying action. Disregard hearing date if that date has expired.

Hearing: Case Management Conference	**Date: 01/14/2027**	**Time: 8:45 AM Department: 10B**
JUDGE	**COURT LOCATION**	**PHONE Numbers:**
THIS CASE HAS BEEN ASSIGNED TO JUDGE BLANCA BANUELOS IN DEPARTMENT 10B FOR ALL PURPOSES, INCLUDING TRIAL.	**Stockton**	**Stockton: 209-992-5693** **Lodi: 209-992-5522**

[**X**] ADR & Scheduling Information is available on court website @ sjcourts.org/self-help

1. You must:

   a. **Serve** all named defendant's and file proofs of service on those defendants with the court Within 60 days of the filing of the complaint. (CRC 3.110)

   b. **File and serve** a completed Case Management Conference Statement (use of JC form CM-110 is mandatory) at least 15 days before the Case Management Conference.

   c. **Meet and Confer,** in person or by telephone, to consider each of the issues identified in CRC 3.727 no later than 30 calendar days before the date set for the Case Management Conference. (CRC 3.724)

   d. **Collection cases** are managed pursuant to CRC 3.740.

2. Case Management Conferences, Law and Motion and Ex Partes will be held remotely unless ordered otherwise. For telephonic appearance phone numbers, information and instructions visit @ https://www.sjcourts.org/divisions/civil/ .

3. If this case was eFiled, the plaintiff/petitioner or their attorney must access their copy of this notice and the issued summons for service from the court's case management system at the following link: cms.sjcourts.org/fullcourtweb/start.do.

4. Courtesy Copies: Courtesy copies must be submitted as outlined in Local Rule 3-117. Courtesy copies (only) may be placed in the drop boxes located on the 10th and 11th floor. Courtesy copies can also be placed in the drop box located outside of the courthouse.

Visit our website @ www.sjcourts.org for more information regarding civil cases, local rules and forms.

Date: 07/15/2026 _____Mia Stipe_____,Deputy Clerk

NOTICE OF CASE ASSIGNMENT AND NOTICE OF HEARING

EXHIBIT 6

FW-003 Order on Court Fee Waiver (Superior Court)

Clerk stamps date here when form is filed.

FILED
SUPERIOR COURT SAN JOAQUIN
2026 JUL 15 A 9:46
STEPHANIE BOHRER, CLERK
BY [signature] DEPUTY

1 Person who asked the court to waive court fees:

Name: Brendan Ngehsi Newanforbi
Street or mailing address: 1455 Cat Tail Drive
City: Stockton State: CA Zip: 95204

2 Lawyer, if person in 1 has one *(name, firm name, address, phone number, e-mail, and State Bar number):*

Fill in court name and street address:
Superior Court of California, County of
San Joaquin
180 E Weber Avenue
Stockton, CA 95202

3 A request to waive court fees was filed on *(date):*

☐ The court made a previous fee waiver order in this case on *(date):*

STK-CV-UWT-2026-9118

Case Name: Newanforbi v. Federal Express Corporation

Read this form carefully. All checked boxes ☑ are court orders.

Notice: The court may order you to answer questions about your finances and later order you to pay back the waived fees. If this happens and you do not pay, the court can make you pay the fees and also charge you collection fees. If there is a change in your financial circumstances during this case that increases your ability to pay fees and costs, you must notify the trial court within five days. (Use form FW-010.) If you win your case, the trial court may order the other side to pay the fees. If you settle your civil case for **$10,000** or more, the trial court will have a lien on the settlement in the amount of the waived fees. The trial court may not dismiss the case until the lien is paid.

4 After reviewing your: ☑ *Request to Waive Court Fees* ☐ *Request to Waive Additional Court Fees* **the court makes the following orders:**

a. ☑ The court **grants** your request, as follows:

(1) ☑ **Fee Waiver.** The court grants your request and waives your court fees and costs listed below. *(Cal. Rules of Court, rules 3.55 and 8.818.)* You do not have to pay the court fees for the following:

- Filing papers in superior court
- Making copies and certifying copies
- Sheriff's fee to give notice
- Court fee for phone hearing
- Giving notice and certificates
- Sending papers to another court department
- Reporter's fee for attendance at hearing or trial, if the court is not electronically recording the proceeding and you request that the court provide an official reporter
- Assessment for court investigations under Probate Code section 1513, 1826, or 1851
- Preparing, certifying, copying, and sending the clerk's transcript on appeal
- Holding in trust the deposit for a reporter's transcript on appeal under rule 8.130 or 8.834
- Making a transcript or copy of an official electronic recording under rule 8.835

(2) ☐ **Additional Fee Waiver.** The court grants your request and waives your additional superior court fees and costs that are checked below. *(Cal. Rules of Court, rule 3.56.)* You do not have to pay for the checked items.

☐ Jury fees and expenses
☐ Fees for court-appointed experts
☐ Other *(specify):*
☐ Fees for a peace officer to testify in court
☐ Court-appointed interpreter fees for a witness

Your name: Brendan Nyehsi Newanforbi

Case Number:

b. ☐ The court **denies** your fee waiver request because:

Warning! If you miss the deadline below, the court cannot process your request for hearing or the court papers you filed with your original request. If the papers were a notice of appeal, the appeal may be dismissed.

(1) Your request is incomplete. You have **10 days** after the clerk gives notice of this Order (see date of service ☐ on next page) to:

- Pay your fees and costs, or
- File a new revised request that includes the incomplete items listed:
  ☐ Below ☐ On Attachment 4b(1)

(2) ☐ The information you provided on the request shows that you are not eligible for the fee waiver you requested for the reasons stated: ☐ Below ☐ On Attachment 4b(2)

The court has enclosed a blank *Request for Hearing About Court Fee Waiver Order (Superior Court)* (form FW-006).You have **10 days** after the clerk gives notice of this order (see date of service below) to:

- Pay your fees and costs in full or the amount listed in c below, or
- Ask for a hearing in order to show the court more information. *(Use form FW-006 to request hearing.)*

c. (1) ☐ The court needs more information to decide whether to grant your request. You must go to court on the date on page 3. The hearing will be about the questions regarding your eligibility that are stated:
☐ Below ☐ On Attachment 4c(1)

(2) ☐ Bring the items of proof to support your request, if reasonably available, that are listed:
☐ Below ☐ On Attachment 4c(2)

This is a Court Order.

Your name: Brendan Ngehsi Nkwanforbi

Case Number:

Name and address of court if different from above:

Hearing Date

Date: _____ Time: _____

Dept.: _____ Room: _____

Warning! If item c(1) is checked, and you do not go to court on your hearing date, the judge will deny your request to waive court fees, and you will have 10 days to pay your fees. If you miss that deadline, the court cannot process the court papers you filed with your request. If the papers were a notice of appeal, the appeal may be dismissed.

Date: 7/15/26

STEPHANIE BOHRER

Signature of (check one): ☐ *Judicial Officer* ☑ *Clerk, Deputy*

Request for Accommodations

Assistive listening systems, computer-assisted real-time captioning, or sign language interpreter services are available if you ask at least five days before the hearing. Contact the clerk's office for *Request for Accommodations by Persons With Disabilities and Response* (form MC-410). (Civ. Code, § 54.8.)

Clerk's Certificate of Service

I certify that I am not involved in this case and *(check one)*:

☑ I handed a copy of this Order to the party and attorney, if any, listed in (1) and (2), at the court, on the date below.

☐ This order was mailed first class, postage paid, to the party and attorney, if any, at the addresses listed in (1) and (2), from *(city)*: _____, California, on the date below.

☐ A certificate of mailing is attached.

Date: 7/15/26

STEPHANIE BOHRER

Clerk, by _____, Deputy

Name: MIA STIRE

This is a Court Order.

For your protection and privacy, please press the Clear This Form button after you have printed the form. Print this form Save this form Clear this form

EXHIBIT 7

Wolters Kluwer

CT Corporation
Service of Process Notification
08/05/2026
CT Log Number 552980321

Service of Process Transmittal Summary

TO: Litigation Department
Federal Express Corporation
3620 HACKS CROSS RD, 3RD FLOOR, BUILDING B
MEMPHIS, TN 38125

RE: **Process Served in California**

FOR: Federal Express Corporation (Domestic State: DE)

ENCLOSED ARE COPIES OF LEGAL PROCESS RECEIVED BY THE STATUTORY AGENT OF THE ABOVE COMPANY AS FOLLOWS:

TITLE OF ACTION:	Re: BRENDAN NGEHSI NEWANFORBI // To: Federal Express Corporation
DOCUMENT(S) SERVED:	Notice
COURT/AGENCY:	San Joaquin County - Superior Court - Stockton, CA Case # STKCVUWT20269118
NATURE OF ACTION:	Employee Litigation - Notice Of Amount Of Punitive Damages Sought
PROCESS SERVED ON:	C T Corporation System, GLENDALE, CA
DATE/METHOD OF SERVICE:	By Process Server on 08/05/2026 at 09:37
JURISDICTION SERVED:	California
APPEARANCE OR ANSWER DUE:	01/14/2027 at 08:45 a.m.
ATTORNEY(S)/SENDER(S):	BRENDAN NGEHSI NEWANFORBI 1455 Cat Tail Drive Stockton, CA 95204 209-801-4442
ACTION ITEMS:	CT has retained the current log, Retain Date: 08/05/2026, Expected Purge Date: 08/10/2026 Image SOP Email Notification, Litigation Department stacey.stephens@fedex.com Email Notification, Cynthia Schwind cynthia.schwind@fedex.com Email Notification, Kathy Miller khmiller@fedex.com Email Notification, Donna Moore donnamoore@fedex.com Email Notification, Gabriel Hernandez gabrielhernandez@fedex.com Email Notification, Paula Cates pdcates@fedex.com
REGISTERED AGENT CONTACT:	C T Corporation System 330 N BRAND BLVD STE 700 GLENDALE, CA 91203 8775647529 MajorAccountTeam2@wolterskluwer.com

Wolters Kluwer

CT Corporation
Service of Process Notification
08/05/2026
CT Log Number 552980321

DOCKET HISTORY:

DOCUMENT(S) SERVED	DATE/METHOD OF SERVICE	TO	LOG NUMBER
Summons, Complaint, Verification, Notice	By Process Server on 07/24/2026 at 09:31	Litigation Department Federal Express Corporation	552873969

The information contained in this Transmittal is provided by CT for quick reference only. It does not constitute a legal opinion, and should not otherwise be relied on, as to the nature of action, the amount of damages, the answer date, or any other information contained in the included documents. The recipient(s) of this form is responsible for reviewing and interpreting the included documents and taking appropriate action, including consulting with its legal and other advisors as necessary. CT disclaims all liability for the information contained in this form, including for any omissions or inaccuracies that may be contained therein.

PROCESS SERVER DELIVERY DETAILS

Date: Wed, Aug 5, 2026
Server Name: DROP SERVICE

Entity Served	FEDERAL EXPRESS CORPORATION
Case Number	STKCVUWT20260009118
Jurisdiction	CA

Inserts		

BRENDAN NGEHSI NEWANFORBI
Plaintiff In Pro Per
1455 Cat Tail Drive
Stockton, CA 95204
Telephone: (209) 801-4442
E-mail: bnn.cdl@gmail.com

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF SAN JOAQUIN

BRENDAN NGEHSI NEWANFORBI, Plaintiff, v. **FEDERAL EXPRESS CORPORATION; and DOES 1 through 10, inclusive,** Defendants.	Case No. STK-CV-UWT-2026-0009118 **NOTICE OF AMOUNT OF PUNITIVE DAMAGES SOUGHT** (Code Civ. Proc. § 425.115; Civ. Code § 3294) TO BE SERVED ON: **Federal Express** Assigned to: Hon. Blanca Banuelos, Dept. 10B CMC: Jan. 14, 2027, 8:45 a.m. Action Filed: July 15, 2026

NOTICE OF AMOUNT OF PUNITIVE DAMAGES SOUGHT

(Code of Civil Procedure section 425.115)

TO DEFENDANT FEDERAL EXPRESS CORPORATION:

NOTICE TO DEFENDANT:

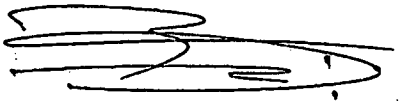
Brendan Ngehsi Newanforbi reserves the right to seek $25,000.00 in punitive damages when Brendan Ngehsi Newanforbi seeks a judgment in the suit filed against you.

This Notice is served pursuant to Code of Civil Procedure section 425.115 to preserve Plaintiff's right to seek punitive damages under Civil Code section 3294 in connection with any default judgment, court judgment after default, or other judgment in this action. The amount stated above is the amount of punitive damages Plaintiff presently seeks against you; if you appear in the action, Plaintiff shall not be limited to that amount. (Code Civ. Proc., § 425.115, subds. (b)-(c).)

PLEASE TAKE FURTHER NOTICE that a Case Management Conference in this action is set for January 14, 2027, at 8:45 a.m., in Department 10B of the Superior Court of California, County of San Joaquin, before the Honorable Blanca Banuelos.

Dated: August 4, 2026

Respectfully submitted,



BRENDAN NGEHSI NEWANFORBI

Plaintiff, In Pro Per

CERTIFICATE OF SERVICE

Brendan Ngehsi Newanforbi v. Federal Express Corporation

I am a resident of the State of California, over the age of eighteen years, and not a party to the within action. My business address is Federal Express Corporation, 2601 Main Street, Suite 1100, Irvine, California 92614.

On August 24, 2026, I served the within document(s): **DECLARATION OF ALLISON A. KRAY IN SUPPORT OF DEFENDANT FEDERAL EXPRESS CORPORATION'S PETITION AND NOTICE OF REMOVAL OF CIVIL ACTION UNDER ARTICLE III OF THE U.S. CONSTITUTION and 28 U.S.C. §§1332, 1441 & 1446**

☑	With the Clerk of the Court for the United States District Court-Eastern District of CA by using the Court's CM/ECF system and that service will be accomplished by the court's CM/ECF system to the person(s) as set forth below.
☐	By transmitting electronically document(s) listed above to the email address(es) listed below.
☑	By placing the document(s) listed above in a sealed envelope with postage thereon fully prepaid, in the United States Mail at Irvine, California addressed as set forth below.
☐	By arranging with First Legal Attorney Service to personally deliver the document(s) listed above to the person(s) at the address(es) set forth below.
☐	By placing the document(s) listed above in a sealed envelope with delivery fees provided for, addressed to the plaintiff as follows for collection by Federal Express for overnight delivery at Federal Express Corporation, 2601 Main Street, Suite 1100, Irvine, California 92614, in accordance with Federal Express Corporation's ordinary business practices.

BRENDAN NGEHSI NEWANFORBI
Plaintiff, In Pro Per
1455 Cat Tail Drive
Stockton, CA 95204
T (209) 801-4442
bnn.cdla@gmail.com
PLAINTIFF, IN PRO PER

☑ *(Federal)* I declare that I am employed in the office of a member of the bar of this court at whose direction the service was made.

Executed on August 24, 2026, at Irvine, California.

/s/ Michele Wilson
Michele Wilson

FEDERAL EXPRESS CORPORATION
2601 MAIN STREET
SUITE 1100
IRVINE, CA 92614

ALLISON A. KRAY, ESQ. (SBN 312544)
allison.kray@fedex.com
FEDERAL EXPRESS CORPORATION
2601 Main Street, Suite 1100
Irvine, California 92614
Telephone: (949) 862-4615
Facsimile: (901) 492-5641

Attorney for Defendant
FEDERAL EXPRESS CORPORATION

UNITED STATES DISTRICT COURT

EASTERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI, Plaintiff, v. FEDERAL EXPRESS CORPORATION, and DOES 1 through 10, inclusive, Defendants.	Case No. **DECLARATION OF GABRIELLA BOW IN SUPPORT OF NOTICE OF REMOVAL OF CIVIL ACTION UNDER 28 U.S.C. §§ 1332, 1441 AND 1446** Complaint Filed: July 15, 2026 Trial Date: Not Set

DECLARATION OF GABRIELLA BOW

I, Gabriella Bow, hereby declare and state as follows:

1. I am over the age of eighteen years of age and not a party to the above-captioned action. I have personal knowledge of the facts set forth herein, and if called as a witness, I could and would testify competently to such facts.

2. I am a Sr. Paralegal employed by Defendant Federal Express Corporation ("FedEx"), in its Legal Department. I make this Declaration to support Defendant Federal Express Corporation's Petition and Notice of Removal of Civil Action.

3. I am aware that Federal Express Corporation maintains both paper and electronic personnel records on each of its employees in the regular course of business. I am familiar with the retrieval of corporate documents archived within the various departments at Federal Express Corporation. As a routine part of my job functions, I am required to investigate and retrieve such business records.

4. To perform my job, I have access to FedEx employee records, including paper files and various employee-related databases and information, which contain information on wages, work locations, and home addresses, as well as employment applications, among numerous other items. These reports are made and kept in the regular course of business at FedEx and record acts or events at or near the time they occurred. Moreover, these acts or events were recorded by either a person with personal knowledge of the acts or events, or a person who received the information recorded from a person with personal knowledge of such information. Much of this information is password protected and FedEx employs a division of IT professionals who furnish maintenance to FedEx's computerized personnel databases and install robust firewalls to ensure the accuracy of FedEx's computerized personnel records. As a Sr. Paralegal, I have access to and I am able to run reports to gain access to information regarding FedEx's employees.

5. Attached hereto as **Exhibit 8** is a true and correct copy of conditional offer of employment ("Conditional Offer") for Plaintiff Brendan Ngehsi Newanforbi

FEDERAL EXPRESS CORPORATION
2601 MAIN STREET
SUITE 1100
IRVINE, CA 92614

("Plaintiff") with FedEx at the location at 5655 Hood Way, Tracy, CA, 9537. Personal information has been redacted for privacy. On page 2 of the Conditional Offer, it indicates that the job position Plaintiff Brendan Ngehsi Newanforbi applied for, which was a part time "package handler".

6. Attached hereto as **Exhibit 9** is a sampling of part-time package handlers who were recently hired to work at the same FedEx location that Plaintiff was offered conditional employment for. Personal information has been redacted for privacy. This sampling was created using FedEx employment records kept in the regular course of business at FedEx. This sampling shows that new hires and rehires, at the time of their hiring or rehiring, were paid at an hourly rate ranging from $20.25-$21.25 for up to 20 hours of work per week.

I declare under penalty of perjury under the laws of the State of California and the laws of the United States that the foregoing is true and correct and that this Declaration was executed by me this 24th day of August, 2026, in Irvine, California.

Gabriella Bow

GABRIELLA BOW

FEDERAL EXPRESS CORPORATION
2601 MAIN STREET
SUITE 1100
IRVINE, CA 92614

EXHIBIT 8

US High Volume Conditional Offer

Brendan Ngwanforbi
FXG-US/USA/P952/Tracy Local Colocation

Welcome to the team!

We are excited to extend you a conditional offer with FedEx!

Please confirm all your personal information below, or update as needed.

Personal Information

First Name	Brendan
Middle Initial	
Last Name	Ngwanforbi
Phone number	[redacted]
Email address	[redacted]
Country	United States
Street Address (Line 1)	[redacted]
Apt, Floor, Suite	

City [redacted]

State [redacted]

Zip Code [redacted]

Work Opportunity Tax Credit Information

screeningInitiationDate 01/08/2025

optOutIndicator False

eligibilityStatus Ineligible

links https://api.adp.com/tax/v1/tax-credit-screenings/1AC65C8C-E770-4FCA-BD8A-C31B9DCA139D

Position Information

Based on the availability you indicated, below is the initial schedule we have available that matches your needs. As a package handler, you may have the option to pick up additional shifts based on your availability. As a reminder the times listed are shift start time ranges. Shift times may vary based on volume and business need.

All times listed are start time ranges. Please ensure you have reviewed all lines below:

Work hours:

Part Time (up to 20 hours/week)

Your Sunday Shift(s): Not Available

Shift start times:

Early Morning: Not Available

Mid-Day: Not Available

Afternoon: Not Available

Evening: Not Available

Overnight: Not Available

Your Monday Shift(s): Not Available

Shift start times:

Early Morning: Shift start range 1AM-3AM

Mid-Day: Not Available

Afternoon: Not Available

Evening: Not Available

Overnight: Not Available

Your Tuesday Shift(s): Early Morning

Shift start times:

Early Morning: Shift start range 1AM-3AM

Mid-Day: Not Available

Afternoon: Not Available

Evening: Not Available

Overnight: Not Available

Your Wednesday Shift(s): Early Morning

Shift start times:

Early Morning: Shift start range 1AM-3AM

Mid-Day: Not Available

Afternoon: Not Available

Evening: Not Available

Overnight: Not Available

Your Thursday Shift(s): Early Morning

Shift start times:

Early Morning: Shift start range 1AM-3AM

Mid-Day: Not Available

Afternoon: Not Available

Evening: Not Available

Overnight: Not Available

Your Friday Shift(s): Early Morning

Shift start times:

Early Morning: Shift start range 1AM-3AM

Mid-Day: Not Available

Afternoon: Not Available

Evening: Not Available

Overnight: Not Available

Your Saturday Shift(s): Early Morning

Shift start times:

Early Morning: Shift start range 1AM-3AM

Mid-Day: Not Available

Afternoon: Not Available

Evening: Not Available

Overnight: Not Available

Has your availability changed from the above shifts?	No
We are excited to have you join our team as Package Handler (Warehouse like) at our FedEx location at 5655 Hood Way, Tracy, CA, 95377	Accept

Expected Next Steps

This job offer is conditional upon the satisfactory completion of a background check.

You should expect to receive an additional form that will begin the background check process.

EXHIBIT 9

FEDEX_ID_NBR	EMPLOYEENAME	EVENT_CD_DT	EVENT_CD	JOB_CD	JOB_TITLE_DESC	STD_HRS_QTY	PAY_RATE_TYPE_CD	BASE_SALARY_AMT	FULL_PART_TIME_CD	WORK_COUNTY_NM	WORK_ADDR_1_TXT	WORK_CITY_NM	WORK_STATE_PROVINCE_CD	WORK_POSTAL_CD	WORK_LOCATION_CD
[redacted]	[redacted]	9/2/2025	HIR_NEW	P69602	Package Handler Part Time	20	H	20.25	P	San Joaquin	5655 Hood Way	Tracy	CA	95377	FXG-US/USA/ /USA/P952
[redacted]	[redacted]	4/21/2026	HIR_NEW	P69602	Package Handler Part Time	20	H	20.75	P	San Joaquin	5655 Hood Way	Tracy	CA	95377	FXG-US/USA/ /USA/P952
[redacted]	[redacted]	5/19/2026	HIR_REHIRE	P69602	Package Handler Part Time	20	H	21.25	P	San Joaquin	5655 Hood Way	Tracy	CA	95377	FXG-US/USA/ /USA/P952

CERTIFICATE OF SERVICE

Brendan Ngehsi Newanforbi v. Federal Express Corporation

I am a resident of the State of California, over the age of eighteen years, and not a party to the within action. My business address is Federal Express Corporation, 2601 Main Street, Suite 1100, Irvine, California 92614.

On August 24, 2026, I served the within document(s): **DECLARATION OF GABRIELLA BOW IN SUPPORT OF NOTICE OF REMOVAL OF CIVIL ACTION UNDER 28 U.S.C. §§ 1332, 1441 AND 1446**

☑	With the Clerk of the Court for the United States District Court-Eastern District of CA by using the Court's CM/ECF system and that service will be accomplished by the court's CM/ECF system to the person(s) as set forth below.
☐	By transmitting electronically document(s) listed above to the email address(es) listed below.
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☐	By placing the document(s) listed above in a sealed envelope with delivery fees provided for, addressed to the plaintiff as follows for collection by Federal Express for overnight delivery at Federal Express Corporation, 2601 Main Street, Suite 1100, Irvine, California 92614, in accordance with Federal Express Corporation's ordinary business practices.

BRENDAN NGEHSI NEWANFORBI
Plaintiff, In Pro Per
1455 Cat Tail Drive
Stockton, CA 95204
T (209) 801-4442
bnn.cdla@gmail.com
PLAINTIFF, IN PRO PER

☑ *(Federal)* I declare that I am employed in the office of a member of the bar of this court at whose direction the service was made.

Executed on August 24, 2026, at Irvine, California.

/s/ Michele Wilson
Michele Wilson

FEDERAL EXPRESS CORPORATION
2601 MAIN STREET
SUITE 1100
IRVINE, CA 92614

ALLISON A. KRAY, ESQ. (SBN 312544)
allison.kray@fedex.com
FEDERAL EXPRESS CORPORATION
2601 Main Street, Suite 1100
Irvine, California 92614
Telephone: (949) 862-4615
Facsimile: (901) 492-5641

Attorney for Defendant
FEDERAL EXPRESS CORPORATION

UNITED STATES DISTRICT COURT

EASTERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI, Plaintiff, v. FEDERAL EXPRESS CORPORATION, and DOES 1 through 10, inclusive, Defendants.	Case No. **DECLARATION OF SHAHRAM A. ESLAMI IN SUPPORT OF NOTICE OF REMOVAL OF CIVIL ACTION UNDER 28 U.S.C. §§ 1332, 1441 AND 1446** **[DIVERSITY JURISDICTION]** Complaint Filed: July 15, 2026 Trial Date: Not Set

DECLARATION OF SHAHRAM A. ESLAMI

I, Shahram A. Eslami, hereby declare and state as follows:

1. I am over the age of eighteen and competent to testify as to the matters set forth herein. I am a Staff Vice President of Securities and Corporate Law employed by FedEx Corporation in Memphis, Tennessee. I am fully familiar with the corporate organization and history of FedEx Corporation and its subsidiaries. I have personal knowledge of the facts contained herein, and if called and sworn as a witness, I could and would testify competently to such facts. I make this declaration in support of defendant Federal Express Corporation's Notice of Removal.

2. FedEx Corporation was incorporated in the State of Delaware on October 2, 1997. Its headquarters and principal place of business is located at 942 South Shady Grove Road, Memphis, Tennessee 38120. FedEx Corporation is a publicly-traded holding company with several wholly-owned subsidiaries. The majority of FedEx Corporation's high-level officers, including its President and Chief Executive Officer, Executive Vice President/Chief Financial Officer, Executive Vice President – Chief Digital and Information Officer, Executive Vice President/General Counsel/Secretary, and Executive Vice President- Chief People Officer, work at the Memphis headquarters.

3. Federal Express Corporation is a wholly-owned subsidiary of FedEx Corporation. Federal Express Corporation was incorporated in the State of Delaware on June 24, 1971. Since 1973, Federal Express Corporation's headquarters and principal place of business has been located in Memphis, Tennessee. Currently, Federal Express Corporation's world headquarters and principal place of business is located at 3610 Hacks Cross Road, Memphis, Tennessee 38125. The majority of Federal Express Corporation's high-level officers, including its President and Chief Executive Officer, Chief Operating Officer, Chief Financial Officer, Chief Legal Officer, and Chief Human Resources Officer, work in Memphis, Tennessee.

FEDERAL EXPRESS CORPORATION
2601 MAIN STREET
SUITE 1100
IRVINE, CA 92614

4. Federal Express Corporation conducts business throughout the United States and the world.

I declare under penalty of perjury under the laws of the state of California and the laws of the United States that the foregoing is true and correct and that this declaration was executed by me this 24th day of August 2026, in Memphis, Tennessee.

SHAHRAM A. ESLAMI

FEDERAL EXPRESS CORPORATION
2601 MAIN STREET
SUITE 1100
IRVINE, CA 92614

CERTIFICATE OF SERVICE

Brendan Ngehsi Newanforbi v. Federal Express Corporation

I am a resident of the State of California, over the age of eighteen years, and not a party to the within action. My business address is Federal Express Corporation, 2601 Main Street, Suite 1100, Irvine, California 92614.

On August 24, 2026, I served the within document(s): DECLARATION OF SHAHRAM A. ESLAMI IN SUPPORT OF NOTICE OF REMOVAL

☑	With the Clerk of the Court for the United States District Court-Eastern District of CA by using the Court's CM/ECF system and that service will be accomplished by the court's CM/ECF system to the person(s) as set forth below.
☐	By transmitting electronically document(s) listed above to the email address(es) listed below.
☑	By placing the document(s) listed above in a sealed envelope with postage thereon fully prepaid, in the United States Mail at Irvine, California addressed as set forth below.
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☐	By placing the document(s) listed above in a sealed envelope with delivery fees provided for, addressed to the plaintiff as follows for collection by Federal Express for overnight delivery at Federal Express Corporation, 2601 Main Street, Suite 1100, Irvine, California 92614, in accordance with Federal Express Corporation's ordinary business practices.

BRENDAN NGEHSI NEWANFORBI
Plaintiff, In Pro Per
1455 Cat Tail Drive
Stockton, CA 95204
T (209) 801-4442
bnn.cdla@gmail.com
PLAINTIFF, IN PRO PER

☑ *(Federal)* I declare that I am employed in the office of a member of the bar of this court at whose direction the service was made.

Executed on August 24, 2026, at Irvine, California.

/s/ Michele Wilson
Michele Wilson

FEDERAL EXPRESS CORPORATION
2601 MAIN STREET
SUITE 1100
IRVINE, CA 92614

JS 44 (Rev. 04/21)

CIVIL COVER SHEET

The JS 44 civil cover sheet and the information contained herein neither replace nor supplement the filing and service of pleadings or other papers as required by law, except as provided by local rules of court. This form, approved by the Judicial Conference of the United States in September 1974, is required for the use of the Clerk of Court for the purpose of initiating the civil docket sheet. *(SEE INSTRUCTIONS ON NEXT PAGE OF THIS FORM.)*

I. (a) PLAINTIFFS

BRENDAN NGEHSI NEWANFORBI

(b) County of Residence of First Listed Plaintiff San Joaquin
(EXCEPT IN U.S. PLAINTIFF CASES)

(c) Attorneys *(Firm Name, Address, and Telephone Number)*

Brendan Ngehsi Newanforbi, Plaintiff, In Pro Per
1455 Cat Tail Drive, Stockton, CA 95204 (209)801-4442

DEFENDANTS

FEDERAL EXPRESS CORPORATION

County of Residence of First Listed Defendant Shelby County, TN
(IN U.S. PLAINTIFF CASES ONLY)

NOTE: IN LAND CONDEMNATION CASES, USE THE LOCATION OF THE TRACT OF LAND INVOLVED.

Attorneys *(If Known)*

Allison A. Kray, Esq., Federal Express Corporation
2601 Main St., Suite 1100, Irvine, CA 92614 (949)862-4615

II. BASIS OF JURISDICTION *(Place an "X" in One Box Only)*

- ☐ 1 U.S. Government Plaintiff
- ☐ 3 Federal Question *(U.S. Government Not a Party)*
- ☐ 2 U.S. Government Defendant
- ☒ 4 Diversity *(Indicate Citizenship of Parties in Item III)*

III. CITIZENSHIP OF PRINCIPAL PARTIES *(Place an "X" in One Box for Plaintiff and One Box for Defendant)*

(For Diversity Cases Only)

	PTF	DEF		PTF	DEF
Citizen of This State	☒ 1	☐ 1	Incorporated *or* Principal Place of Business In This State	☐ 4	☐ 4
Citizen of Another State	☐ 2	☐ 2	Incorporated *and* Principal Place of Business In Another State	☐ 5	☒ 5
Citizen or Subject of a Foreign Country	☐ 3	☐ 3	Foreign Nation	☐ 6	☐ 6

IV. NATURE OF SUIT *(Place an "X" in One Box Only)*

Click here for: Nature of Suit Code Descriptions.

CONTRACT
- ☐ 110 Insurance
- ☐ 120 Marine
- ☐ 130 Miller Act
- ☐ 140 Negotiable Instrument
- ☐ 150 Recovery of Overpayment & Enforcement of Judgment
- ☐ 151 Medicare Act
- ☐ 152 Recovery of Defaulted Student Loans (Excludes Veterans)
- ☐ 153 Recovery of Overpayment of Veteran's Benefits
- ☐ 160 Stockholders' Suits
- ☐ 190 Other Contract
- ☐ 195 Contract Product Liability
- ☐ 196 Franchise

TORTS

PERSONAL INJURY
- ☐ 310 Airplane
- ☐ 315 Airplane Product Liability
- ☐ 320 Assault, Libel & Slander
- ☐ 330 Federal Employers' Liability
- ☐ 340 Marine
- ☐ 345 Marine Product Liability
- ☐ 350 Motor Vehicle
- ☐ 355 Motor Vehicle Product Liability
- ☐ 360 Other Personal Injury
- ☐ 362 Personal Injury - Medical Malpractice

PERSONAL INJURY
- ☐ 365 Personal Injury - Product Liability
- ☐ 367 Health Care/ Pharmaceutical Personal Injury Product Liability
- ☐ 368 Asbestos Personal Injury Product Liability

PERSONAL PROPERTY
- ☐ 370 Other Fraud
- ☐ 371 Truth in Lending
- ☐ 380 Other Personal Property Damage
- ☐ 385 Property Damage Product Liability

FORFEITURE/PENALTY
- ☐ 625 Drug Related Seizure of Property 21 USC 881
- ☐ 690 Other

LABOR
- ☐ 710 Fair Labor Standards Act
- ☐ 720 Labor/Management Relations
- ☐ 740 Railway Labor Act
- ☐ 751 Family and Medical Leave Act
- ☐ 790 Other Labor Litigation
- ☐ 791 Employee Retirement Income Security Act

IMMIGRATION
- ☐ 462 Naturalization Application
- ☐ 465 Other Immigration Actions

BANKRUPTCY
- ☐ 422 Appeal 28 USC 158
- ☐ 423 Withdrawal 28 USC 157

INTELLECTUAL PROPERTY RIGHTS
- ☐ 820 Copyrights
- ☐ 830 Patent
- ☐ 835 Patent - Abbreviated New Drug Application
- ☐ 840 Trademark
- ☐ 880 Defend Trade Secrets Act of 2016

SOCIAL SECURITY
- ☐ 861 HIA (1395ff)
- ☐ 862 Black Lung (923)
- ☐ 863 DIWC/DIWW (405(g))
- ☐ 864 SSID Title XVI
- ☐ 865 RSI (405(g))

FEDERAL TAX SUITS
- ☐ 870 Taxes (U.S. Plaintiff or Defendant)
- ☐ 871 IRS—Third Party 26 USC 7609

OTHER STATUTES
- ☐ 375 False Claims Act
- ☐ 376 Qui Tam (31 USC 3729(a))
- ☐ 400 State Reapportionment
- ☐ 410 Antitrust
- ☐ 430 Banks and Banking
- ☐ 450 Commerce
- ☐ 460 Deportation
- ☐ 470 Racketeer Influenced and Corrupt Organizations
- ☐ 480 Consumer Credit (15 USC 1681 or 1692)
- ☐ 485 Telephone Consumer Protection Act
- ☐ 490 Cable/Sat TV
- ☐ 850 Securities/Commodities/ Exchange
- ☐ 890 Other Statutory Actions
- ☐ 891 Agricultural Acts
- ☐ 893 Environmental Matters
- ☐ 895 Freedom of Information Act
- ☐ 896 Arbitration
- ☐ 899 Administrative Procedure Act/Review or Appeal of Agency Decision
- ☐ 950 Constitutionality of State Statutes

REAL PROPERTY
- ☐ 210 Land Condemnation
- ☐ 220 Foreclosure
- ☐ 230 Rent Lease & Ejectment
- ☐ 240 Torts to Land
- ☐ 245 Tort Product Liability
- ☐ 290 All Other Real Property

CIVIL RIGHTS
- ☐ 440 Other Civil Rights
- ☐ 441 Voting
- ☒ 442 Employment
- ☐ 443 Housing/ Accommodations
- ☐ 445 Amer. w/Disabilities - Employment
- ☐ 446 Amer. w/Disabilities - Other
- ☐ 448 Education

PRISONER PETITIONS

Habeas Corpus:
- ☐ 463 Alien Detainee
- ☐ 510 Motions to Vacate Sentence
- ☐ 530 General
- ☐ 535 Death Penalty

Other:
- ☐ 540 Mandamus & Other
- ☐ 550 Civil Rights
- ☐ 555 Prison Condition
- ☐ 560 Civil Detainee - Conditions of Confinement

V. ORIGIN *(Place an "X" in One Box Only)*

- ☐ 1 Original Proceeding
- ☒ 2 Removed from State Court
- ☐ 3 Remanded from Appellate Court
- ☐ 4 Reinstated or Reopened
- ☐ 5 Transferred from Another District *(specify)*
- ☐ 6 Multidistrict Litigation - Transfer
- ☐ 8 Multidistrict Litigation - Direct File

VI. CAUSE OF ACTION

Cite the U.S. Civil Statute under which you are filing ***(Do not cite jurisdictional statutes unless diversity)***:
Jurisdiction under Article III of the U.S. Constitution and 28 U.S.C. Sections 1332, 1441 and 1446.

Brief description of cause:
Removal of civil action is based on Diversity.

VII. REQUESTED IN COMPLAINT:

☐ CHECK IF THIS IS A **CLASS ACTION** UNDER RULE 23, F.R.Cv.P.

DEMAND $

CHECK YES only if demanded in complaint:

JURY DEMAND: ☒ Yes ☐ No

VIII. RELATED CASE(S) IF ANY

(See instructions): JUDGE _____ DOCKET NUMBER _____

DATE
8/24/2026

SIGNATURE OF ATTORNEY OF RECORD
Allison Kray

FOR OFFICE USE ONLY

RECEIPT # _____ AMOUNT _____ APPLYING IFP _____ JUDGE _____ MAG. JUDGE _____

CERTIFICATE OF SERVICE

Brendan Ngehsi Newanforbi v. Federal Express Corporation

I am a resident of the State of California, over the age of eighteen years, and not a party to the within action. My business address is Federal Express Corporation, 2601 Main Street, Suite 1100, Irvine, California 92614.

On August 24, 2026, I served the within document(s): CIVIL COVER SHEET

☑	With the Clerk of the Court for the United States District Court-Eastern District of CA by using the Court's CM/ECF system and that service will be accomplished by the court's CM/ECF system to the person(s) as set forth below.
☐	By transmitting electronically document(s) listed above to the email address(es) listed below.
☑	By placing the document(s) listed above in a sealed envelope with postage thereon fully prepaid, in the United States Mail at Irvine, California addressed as set forth below.
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Plaintiff, In Pro Per
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T (209) 801-4442
bnn.cdla@gmail.com
PLAINTIFF, IN PRO PER

☑ *(Federal)* I declare that I am employed in the office of a member of the bar of this court at whose direction the service was made.

Executed on August 24, 2026, at Irvine, California.

/s/ Michele Wilson
Michele Wilson

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